

Jurisdiction: Texas (State & Fed.)

Question

1. Is there case law on a state court not having discretion to refuse to enforce violations of FHA or ADA?

State courts do not have discretion to refuse enforcement of violations of the Fair Housing Act (FHA) or the Americans with Disabilities Act (ADA) when such violations are established. Federal law, including the FHA and ADA, preempts conflicting state laws and mandates compliance with their provisions. Case law and statutory provisions affirm the supremacy of federal law in ensuring protections against discrimination based on disability and other protected characteristics.

Federal Supremacy of FHA and ADA Over State Laws

The FHA and ADA establish comprehensive federal mandates to eliminate discrimination against individuals with disabilities and other protected classes. The FHA prohibits discrimination in housing, including the refusal to make reasonable accommodations necessary to afford individuals with disabilities equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [1]. Similarly, the ADA requires public entities to make reasonable modifications to policies, practices, or procedures to avoid discrimination against individuals with disabilities ([42 U.S.C.A. § 12188](#)) [2].

Federal courts have consistently held that state statutory restrictions or actions that conflict with federal fair housing policies must yield to the supremacy of federal law. For example, in [Deep East Texas Regional Mental Health and Mental Retardation Services v. Kinnear](#) , the court emphasized that state court actions cannot deprive or limit the ability of individuals with disabilities to live in their chosen residences within their communities. The court held that federal law disallows restrictive land use practices justified by state statutory enactments ([Deep East Texas Regional Mental Health and Mental Retardation Services v. Kinnear](#), 877 S.W.2d 550 (1994)) [3]. This principle underscores the obligation of state courts to enforce federal fair housing laws and not to permit local or state laws to undermine these protections.

Enforcement of FHA and ADA Violations

The FHA and ADA provide robust enforcement mechanisms to ensure compliance. Under the FHA, violations occur when a disabled resident is denied reasonable accommodations, regardless of subsequent remedies ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [4]. The FHA's provisions are interpreted broadly to ensure a generous construction of its protections against discrimination ([Swanston v. City of Plano, Texas](#), 557 F.Supp.3d 781 (2021)) [5]. Similarly, the ADA incorporates enforcement measures and remedies available under the Rehabilitation Act and Title VI of the Civil Rights Act, allowing for both legal and equitable remedies to address violations ([Steward by next friend Green v. Young](#), 787 F.Supp.3d 476 (2025)) [6].

The federal government has expanded enforcement powers under the FHA, enabling it to seek legal and equitable remedies, including monetary damages, on behalf of aggrieved individuals ([U.S. v. City of Jackson, Miss.](#), 359 F.3d 727 (2004)) [7]. This demonstrates the strong federal commitment to enforcing anti-discrimination laws and ensuring that state courts comply with these mandates.

Functional Equivalence of FHA and ADA Accommodations Requirements

The accommodations requirements under the FHA and ADA are functionally identical, as both statutes aim to provide equal opportunities for individuals with disabilities. This equivalence reinforces the obligation of state courts to enforce violations of these federal laws without discretion to refuse compliance ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [8].

Limitations on State Court Discretion

State courts are not permitted to refuse enforcement of FHA or ADA violations based on local ordinances or state laws that conflict with federal mandates. For instance, in [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#) , the Fifth Circuit held that Congress acted within its Commerce Clause authority in enacting the FHA's reasonable accommodations provision, which prohibits local communities from discriminating against disabled persons in housing ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [4]. Similarly, in [Robinson v. City of Friendswood](#) , the court clarified that the FHA applies not only to direct discrimination by sellers or landlords but also to practices such as enforcing zoning or land use laws that effectively deny housing to disabled individuals ([Robinson v. City of Friendswood](#), 890 F.Supp. 616 (1995)) [9].

Negative Treatment of State Court Decisions

It is important to note that state court decisions that conflict with federal fair housing laws may be vacated or remanded. For example, in [Swanston v. City of Plano, Texas](#) , the court emphasized the FHA's broad and inclusive scope, which aims to eradicate discriminatory practices and ensure equal housing opportunities for individuals with disabilities ([Swanston v. City of Plano, Texas](#), 557 F.Supp.3d 781 (2021)) [5]. However, this case was later vacated and remanded by [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) , which further clarified the functional equivalence of FHA and ADA accommodations requirements ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), 86 F.4th 1108 (2023)) [8].

In conclusion, state courts are bound by the supremacy of federal law and cannot exercise discretion to refuse enforcement of violations of the FHA or ADA. Federal statutes and case law establish clear mandates for compliance, ensuring that individuals with disabilities and other protected classes are afforded equal opportunities in housing and public accommodations.

Commentary about this question

§ 9:46. Other defenses

Architects and Engineers • Architects and Engineers § 9:46 (4th ed.)

The material discusses judicial treatment of claims involving the Fair Housing Act (FHA) and the Americans with Disabilities Act (ADA), particularly concerning the enforceability of nondelegable duties by state and federal courts. It highlights several cases where courts addressed the preemption of state law claims by the ADA and FHA, emphasizing that duties imposed by these statutes cannot be contracted away through indemnification. The text examines federal court discretion in supplemental jurisdiction over cross-claims linked to ADA and FHA violations and explores limits on professional negligence claims in the context of these statutes. The analysis includes Texas federal court decisions and courts applying the doctrine that owners cannot avoid statutory obligations, though contribution claims for third-party wrongdoing may be permitted. This framework indirectly relates to the question of whether state

courts have discretion to refuse enforcement of FHA or ADA violations, as it addresses jurisdictional and preemption issues connected to such enforcement. The jurisdictional focus includes Texas federal courts, relevant to the user's inquiry.

§ 10:58. Indemnity for Fair Housing Act and Americans with Disabilities Act exposures: Federal preemption issues

Bruner and O'Connor on Construction Law • 3 Bruner & O'Connor Construction Law § 10:58

This analysis addresses federal preemption issues concerning indemnity claims related to violations of the Fair Housing Act (FHA) and the Americans with Disabilities Act (ADA). It highlights that federal law, through preemption doctrines, may invalidate state law indemnity agreements that allow a party to avoid liability for FHA and ADA violations. Courts have found these indemnity claims inconsistent with the non-delegable duties imposed by federal anti-discrimination statutes, emphasizing that permitting such indemnity would undermine the enforcement purposes of these laws. The document discusses different forms of preemption—express, field, and conflict—and illustrates federal courts' reluctance to enforce state-based indemnity agreements that conflict with the remedial goals of the FHA and ADA. Although focused on indemnity, this underscores the limited discretion state courts have to enforce rights or defenses that would impair federal anti-discrimination protections. The analysis includes relevant case law primarily from federal courts addressing these issues, which is applicable in Texas jurisdiction given federal supremacy principles.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (A) a refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted. (FN2)..."

2. § 12188. Enforcement

42 USCA § 12188

"...(a) In general (1) Availability of remedies and procedures The remedies and procedures set forth in section 2000a-3(a) of this title are the remedies and procedures this subchapter provides to any person who is being subjected to discrimination on the basis of disability in violation of this subchapter or who has reasonable grounds for believing that such person is about to be subjected to discrimination in violation of section 12183 of this title. Nothing in this section shall require a person with a disability to engage in a futile gesture if such person has actual notice that a person or organization covered by this subchapter does not intend to comply with its provisions. (2) Injunctive relief In the case of violations of sections 12182(b)(2)(A)(iv) and section (FN1) 12183(a) of this title, injunctive relief shall include an order to alter facilities to make such facilities readily accessible to and usable by..."

"...(b) Enforcement by Attorney General (1) Denial of rights (A) Duty to investigate On the application of a State or local government, the Attorney General may, in consultation with the Architectural and Transportation Barriers Compliance Board, and after prior notice and a public hearing at which persons, including individuals with disabilities, are provided an opportunity to testify against such certification, certify that a State law or local building code or similar ordinance that establishes accessibility requirements meets or exceeds the minimum requirements of this chapter for the accessibility and usability of covered facilities under this subchapter. At any enforcement proceeding under this section, such certification by the Attorney General shall be rebuttable evidence that such State law or local ordinance does meet or exceed the minimum requirements of this chapter...."

3. **Deep East Texas Regional Mental Health and Mental Retardation Services v. Kinneer**

Court of Appeals of Texas, Beaumont. • June 09, 1994 • 877 S.W.2d 550 • 1994 WL 247423

"...Part II-The Federal Statutes. State statutory restrictions affecting Federal fair housing policies must yield to the Federal Fair Housing Act and for this reason and on this rationale the provisions of Tex.Prop.Code Ann. S 202.003(b) (Vernon Supp.1994) that states no restrictions are to apply to property used as a family home must prevail over any attempted limitations under Tex.Hum.Res.Code Ann. S 123.003 (Vernon Supp.1994). Tex.Prop.Code Ann. S 202.003(b) is superior to Tex.Hum.Res.Code Ann. S 123.003(b). The attempt to enforce restrictive covenants dated before September 1, 1985, is impermissible under the rule of federal law supremacy. The Federal Fair Housing Act does not violate the provisions of the United States Constitution. And this federal legislation was and is effective and had the intention and purpose of disallowing restrictive land use practices sought to be justified by State statutory enactments. Indeed, state court action is not permitted to deprive or limit the ability of handicapped individuals to live in the residence of their choice in their own familiar communities...."

"...Part II-The Federal Statutes. The rule of federal law supremacy requires that we heed the Federal Fair Housing Act inasmuch as federal statutes supersede within their proper realm the State statutes. Our rulings and rationale in Part II comprise a separate and independent basis for reversing the judgment below and dissolving the injunctions...."

4. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...Congress acted within its Commerce Clause authority in enacting provision of Fair Housing Amendments Act (FHAA) requiring reasonable accommodations in rules to afford handicapped persons equal opportunities

to rent or buy dwellings; sale or rental of residential housing was economic/commercial activity, Congress manifested intent to prohibit discrimination in national housing market, legislative action resulting in passage of provision recognized pattern of discrimination affecting interstate housing market, connection between provision and interstate commerce was not too attenuated, and it would not serve federalism to allow local communities to discriminate against disabled persons. U.S.C.A. Const. Art. 1, S 8, cls. 3, 18; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...3. The Legislative History of the FHAA Supports the Interstate Nature of the Reasonable Accommodations Provision. Nevertheless, following the dictates of Morrison, we find the legislative action that resulted in the passage of the FHAA to have recognized a pattern of discrimination that affected the interstate housing market and the creation of commercial group homes for handicapped individuals. The passage of the FHAA in 1988 was the culmination of eight years of congressional discussion on the topic of discrimination against the disabled. Hearings on the subject were held in 1979, 1986, and 1988. Citizens, advocates, and government officials testified as to the nature of the problem. Congress even requested legal briefing on the interstate nature of the discrimination...."

"...3. The Legislative History of the FHAA Supports the Interstate Nature of the Reasonable Accommodations Provision. While the final 1988 Amendments were passed without formal findings, as this court recognized in the context of the federal regulation of machine guns, congressional findings, even if not explicitly reiterated in each incarnation of the legislation, "clearly subsist in the cumulative memory of Congress." *United States v. Knutson*, 113 F.3d 27, 30 (5th Cir.1997). This memory includes not only the anti-discriminatory purpose of the FHAA, but also the FHA. See *Seniors Civil Liberties Ass'n v. Kemp*, 965 F.2d 1030, 1034 (11th Cir.1992) ("Congress had ample evidence before it, and was adequately aware, that its exercise of power under the Fair Housing Act was supported by the Commerce Clause."). As Senator Weicker stated on the floor of the Senate, the FHAA legislation was introduced "to provide comprehensive civil rights protections for disabled individuals that are parallel in scope of coverage to existing civil rights laws protecting minorities." 134 cong. Rec. S10552 (1988). As the connection between racial discrimination and its affect on interstate commerce had been established in *Heart of Atlanta Motel and McClung*, Congress was well within its institutional authority to act to prevent discrimination against the disabled...."

5. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream." *Swanston v. City of Plano, Tex.*, No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting *Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA")*, 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting *Groome Res., Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy

a dwelling." Id. S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" City of Edmonds v. Oxford House, Inc., 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

6. Steward by next friend Green v. Young

United States District Court, W.D. Texas, San Antonio Division. • June 17, 2025 • 787 F.Supp.3d 476 • 2025 WL 1836138

"...A. Integration mandate. 0023. For violations of Title II, Congress incorporated the same enforcement measures and legal or equitable remedies available under S 505 of the Rehabilitation Act. 42 U.S.C. S 12133 ("The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title"); 28 C.F.R. S 35.103 ("this part (which implements Title II of the ADA) shall not be construed to apply a lesser standard than the standards applied under title V of the Rehabilitation Act . or the regulations issued by Federal agencies pursuant to that title"). For violations of S 504 of the Rehabilitation Act, S 505 of the Rehabilitation Act incorporates the remedies, rights, and procedures set forth in Title VI of the Civil Rights Act. See 29 U.S.C. S 794a(a)(2). Title VI, in turn, directs that compliance may be effected by the termination or denial of federal funds, or "by any other means authorized by law." 42 U.S.C. S 2000d-1. Thus, remedies both at law and in equity are available to redress violations of Title II and Section 504. See 42 U.S.C. S 2000d-7(a)(2); Olmstead, 527 U.S. at 590 n. 4, 119 S.Ct. 2176; see also 28 C.F.R. S 35.178 ("In any action against a State for a violation of the requirements of this Act, remedies (including remedies both at law and in equity) are available for such a violation to the same extent as such remedies are available for such a violation in an action against any public or private entity other than a State")...."

7. U.S. v. City of Jackson, Miss.

United States Court of Appeals, Fifth Circuit. • February 04, 2004 • 359 F.3d 727 • 2004 WL 206181

"...ii. Expanded Enforcement Powers under the FHAA. In 1988, though, Congress passed the FHAA, which substantially amended the FHA and reshaped the landscape of fair housing actions brought under it. In addition to extending federal fair housing protection to handicapped persons and families with children, the FHAA considerably enhanced the federal government's enforcement powers. Enabling the government to seek the full panoply of legal and equitable remedies on behalf of nonparty victims of discrimination was a chief objective of the FHAA. The FHAA now permits the government to seek monetary damages and other remedies on behalf of "persons aggrieved." As explained by one federal court,..."

"...ii. Expanded Enforcement Powers under the FHAA. By abrogating Mitchell, Congress vitiated the central concern that governed our decision in Northside Realty-namely, the absence of specific congressional authority for the government to seek damages and other remedies for nonparty victims of housing discrimination. In contrast to what was permissible when Northside Realty was decided, the "relief sought by the Government" now can "be characterized as merely an incidental part of the main cause." No longer must it be "an altogether new and different matter." As such, the City's reliance on Northside Realty is misplaced, and the district court's order that the City pay damages to CA equal to its expenses, costs, and attorney's fees was proper...."

8. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...The accommodations requirements under both the Fair Housing Act (FHA) and the ADA are functionally identical. 42 U.S.C.A. S 3604(f)(3)(B); Americans with Disabilities Act of 1990 S 2 et seq., 42 U.S.C.A. S 12101 et seq...."

9. Robinson v. City of Friendswood

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise to make unavailable or deny, dwelling to buyer or renter because of handicap applies not only to sellers or landlords, but to sophisticated practices such as enforcing zoning or land use laws that have effect of denying housing to disabled. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...Fair Housing Act (FHA) does not permit disabled individuals to circumvent regulatory process for exceptions to zoning ordinances. Civil Rights Act of 1968, SS 801 et seq., 804(f)(1, 2), as amended, 42 U.S.C.A. SS 3601 et seq., 3604(f)(1, 2)...."

10. Wright v. City of Roanoke Redevelopment and Housing Authority

Supreme Court of the United States • January 14, 1987 • 479 U.S. 418 • 107 S.Ct. 766

"...II. Here, the Court of Appeals held that the statute and the Brooke Amendment clearly manifested congressional intention to vest in HUD the exclusive power to enforce the benefits due housing project tenants and hence the intention to foreclose both a private cause of action under the Housing Act and any private enforcement under S 1983. For the Court of Appeals, the barrier was not the lack of statutory right or its quality or enforceability-"the plaintiffs under 42 U.S.C. S 1437a have certain rights," 771 F.2d, at 837-but the fact that Congress had not intended tenants to have the authority themselves to sue: "HUD alone may, as quasi trustee, take legal action, for the right is explicitly tailored not to allow the beneficiaries, the low cost housing tenants, to do so." Ibid...."

"...Neither the Housing Act nor the Brooke Amendment manifests congressional intention that exclusive power to enforce the benefits due housing project tenants belongs to the Department of Housing and Urban Development, foreclosing a private cause of action under S 1983; not only are the statutes devoid of any express indication that exclusive enforcement authority is vested in HUD, but both congressional and agency actions indicate that enforcement authority is not centralized and that private actions were anticipated; nor are remedial mechanisms provided sufficiently comprehensive and effective to raise a clear inference that Congress intended to foreclose a S 1983 cause of action for enforcement of tenants' rights secured by federal law. United States Housing Act of 1937, S 1 et seq., 42 U.S.C.(1970 Ed.) S 1401 et seq.; United States Housing Act of 1937, S 3, as amended, 42 U.S.C.A. S 1437a; 42 U.S.C.A. S 1983...."

11. Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...The underlying dispute in this case concerns where housing for low-income persons should be constructed in Dallas, Texas—that is, whether the housing should be built in the inner city or in the suburbs. This dispute comes to the Court on a disparate-impact theory of liability. In contrast to a disparate-treatment case, where a "plaintiff must establish that the defendant had a discriminatory intent or motive," a plaintiff bringing a disparate-impact claim challenges practices that have a "disproportionately adverse effect on minorities" and are otherwise unjustified by a legitimate rationale. *Ricci v. DeStefano*, 557 U.S. 557, 577, 129 S.Ct. 2658, 174 L.Ed.2d 490 (2009) (internal quotation marks omitted). The question presented for the Court's determination is whether disparate-impact claims are cognizable under the Fair Housing Act (or FHA), 82 Stat. 81, as amended, 42 U.S.C. § 3601 et seq. I .A Before turning to the question presented, it is necessary to..."

12. *Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.*

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...The Fair Housing Act (FHA) is not intended to provide carte blanche to the handicapped to determine where and how they would live regardless of the ordinances or restrictions at issue. Civil Rights Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

13. *Parada v. Sandhill Shores Property Owners Association, Inc.*

United States District Court, S.D. Texas, Galveston Division. • May 25, 2022 • 604 F.Supp.3d 567 • 2022 WL 1693977

"...Federal action brought by condominium owner against property owners association, alleging violations of the Fair Housing Act (FHA) and ADA, and related state court action were not parallel actions, and thus, Colorado River abstention doctrine did not apply, even though general subject matter of two actions was the same at a broad level of abstraction and type of relief would be similar; state petition alleged breach of contract, breach of fiduciary duty, promissory estoppel, negligent misrepresentation, tortious interference, and adverse possession, parties and their interests were not the same, and concurrent state ruling would not be dispositive of owner's FHA and ADA claims. Civil Rights Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq.; Americans with Disabilities Act of 1990, S 2 et seq., 42 U.S.C.A. S 12101 et seq...."

14. *U.S. v. Billingsley*

United States Court of Appeals, Fifth Circuit. • August 16, 2010 • 615 F.3d 404 • 2010 WL 3212784

"...Background: Following settlement of state court lawsuit brought by subdivision's zoning committee against homeowners, alleging that homeowners had installed a footbridge on their property in violation of restrictive covenants, and state court's subsequent interpretation of settlement agreement to require homeowners to remove footbridge, which they refused to do, the Department of Justice brought an action in federal court on behalf of homeowners against committee for violating the Fair Housing Act (FHA) by failing to make reasonable accommodations for homeowner's disability, and moved for a preliminary injunction to restrain committee from removing footbridge while action was pending. The United States District Court for the Eastern District of Texas, Michael H. Schneider, J., granted the preliminary injunction, and committee appealed. The Court of Appeals, Wiener, Circuit Judge, held that because a private plaintiff enforcing the FHA on his own behalf would not have enjoyed the exception to the Anti-Injunction Act that the government claimed here, and so could not have obtained

a preliminary injunction to prevent enforcement of the state court's ruling, the government, suing on behalf of private individuals, could not obtain a preliminary injunction either. Vacated and remanded...."

"...Where, following settlement of state court lawsuit brought by subdivision's zoning committee against homeowners who allegedly installed footbridge in violation of restrictive covenants, and state court's subsequent interpretation of settlement agreement to require homeowners to remove footbridge, the United States brought action in federal court on behalf of homeowners against committee for violating the Fair Housing Act (FHA) by failing to make reasonable accommodations for homeowner's disability, the government was not entitled to a preliminary injunction restraining committee from removing footbridge while action was pending; because a private plaintiff enforcing the FHA on his own behalf would not have enjoyed the exception to the Anti-Injunction Act that the government claimed here, and so could not have obtained a preliminary injunction to prevent enforcement of state court's ruling, the government, suing on behalf of private individuals, could not obtain an injunction either. 28 U.S.C.A. S 2283; Civil Rights Act of 1968, SS 812, 813, 42 U.S.C.A. SS 3612, 3613...."

15. Board of Trustees of University of Alabama v. Garrett

Supreme Court of the United States • February 21, 2001 • 531 U.S. 356 • 121 S.Ct. 955

"...III. The contrast between this kind of evidence, and the evidence that Congress considered in the present case, is stark. Congressional enactment of the ADA represents its judgment that there should be a "comprehensive national mandate for the elimination of discrimination against individuals with disabilities." 42 U.S.C. S 12101(b) (1). Congress is the final authority as to desirable public policy, but in order to authorize private individuals to recover money damages against the States, there must be a pattern of discrimination by the States which violates the Fourteenth Amendment, and the remedy imposed by Congress must be congruent and proportional to the targeted violation. Those requirements are not met here, and to uphold the Act's application to the States would allow Congress to rewrite the Fourteenth Amendment law laid down by this Court in *Cleburne*. Section 5 does not so broadly enlarge congressional authority. The judgment of the Court of Appeals is therefore Reversed...."

Additional Research on This Topic

16. APPENDIX A TO PART 35—GUIDANCE TO REVISIONS TO ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY IN STATE AND LOCAL GOVERNMENT SERVICES

28 CFR Pt. 35, App. A

"...The Department emphasizes that it has decided only that capuchin monkeys will not be included in the definition of service animals for purposes of its regulation implementing the ADA. This decision does not have any effect on the extent to which public entities are required to allow the use of such monkeys under other Federal statutes. For example, under the FHAct, an individual with a disability may have the right to have an animal other than a dog in his or her home if the animal qualifies as a "reasonable accommodation" that is necessary to afford the individual equal opportunity to use and enjoy a dwelling, assuming that the use of the animal does not pose a direct threat. In some cases, the right of an individual to have an animal under the FHAct may conflict with State or local laws that prohibit all individuals, with or without disabilities, from owning a particular species. However, in

this circumstance, an individual who wishes to request a reasonable modification of the State or local law must do so under the FHAct, not the ADA...."

17. § 794a. Remedies and attorney fees

29 USCA § 794a

"...(a)(1) The remedies, procedures, and rights set forth in section 717 of the Civil Rights Act of 1964 (42 U.S.C. 2000e-16), including the application of sections 706(f) through 706(k) (42 U.S.C. 2000e-5(f) through (k)) (and the application of section 706(e)(3) (42 U.S.C. 2000e-5(e)(3)) to claims of discrimination in compensation), shall be available, with respect to any complaint under section 791 of this title, to any employee or applicant for employment aggrieved by the final disposition of such complaint, or by the failure to take final action on such complaint. In fashioning an equitable or affirmative action remedy under such section, a court may take into account the reasonableness of the cost of any necessary work place accommodation, and the availability of alternatives therefor or other appropriate relief in order to achieve an equitable and appropriate remedy. (2) The remedies, procedures, and rights set forth in title VI of the Civil..."

"...(b) In any action or proceeding to enforce or charge a violation of a provision of this subchapter, the court, in its discretion, may allow the prevailing party, other than the United States, a reasonable attorney's fee as part of the costs...."

18. 🚩 § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title. (g) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

19. 🚩 § 3601. Declaration of policy

42 USCA § 3601

"...It is the policy of the United States to provide, within constitutional limitations, for fair housing throughout the United States...."

20. 🚩 § 3605. Discrimination in residential real estate-related transactions

42 USCA § 3605

"... (a) In general It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin. (b) "Residential real estate-related transaction" defined As used in this section, the term "residential real estate-related transaction" means any of the following: (1) The making or purchasing of loans or providing other financial assistance-- (A) for purchasing, constructing, improving, repairing, or maintaining a dwelling; or (B) secured by residential real estate. (2) The selling, brokering, or appraising of residential real property. (c) Appraisal exemption Nothing in this subchapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, religion, national origin, sex, handicap,..."

"...It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin...."

21. 🚩 City of Austin v. Paxton

United States Court of Appeals, Fifth Circuit. • December 04, 2019 • 943 F.3d 993 • 2019 WL 6520769

"...Texas Attorney General lacked a sufficient connection, arising from compulsion or constraint, to enforcement of Texas statute for which a Texas city sought to enjoin enforcement, as would be required for Ex parte Young exception to Eleventh Amendment sovereign immunity from suit in federal court, in city's action to enjoin enforcement of Texas statute barring municipalities and counties from adopting or enforcing an ordinance or regulation prohibiting a landlord from refusing to rent to a potential tenant who would pay rent with federal housing vouchers; Attorney General's enforcement authority was odd, in that enforcement apparently would be pursued as a defense in a private suit by city against a landlord who refused to abide by city's ordinance, with Attorney General intervening in such a suit to enforce the supremacy of state law, and other cases involving municipal ordinances, in which Attorney General had intervened to enforce the supremacy of state law, lacked any overlapping facts with the case at bar and were not even remotely related to city's ordinance. U.S. Const. Amend. 11; United States Housing Act of 1937 S 8(a), 42 U.S.C.A. S 1437f(a); Tex. Loc. Gov't Code Ann. S 250.007(a); 24 C.F.R. S 982.302(a)...."

Administrative decisions and guidance**2009 Annual Report to Congress**

December 31, 2009 • 2009 WL 5251017

"...context, however, I believe that the IRS in many respects has had an extremely successful year. It has, through talent, determination, and dedication, pulled off what could have been a disastrous filing season, what with significant tax law..."

"...enacted in the midst of the filing season. The IRS had no slack in implementing these new or expanded programs -- including..."

"...IRS this year acted on two longstanding issues that I have identified several times as most serious problems of taxpayers -- identity..."

"...the Taxpayer Advocate Service (TAS), the IRS's Identity Theft Hotline has now committed to handling taxpayers' cases and providing taxpayers with..."

D.R. Horton, Inc.

November 01, 2013 • 2013 WL 5428475

"...company. The Division of Corporation Finance advised that it would not recommend enforcement action if the proposal was excluded from the proxy materials..."

"...proposal submitted to D.R. Horton by Patrick Missud. We also have received a letter from the proponent dated September 27, 2013..."

"...personal claim or grievance against the company. Accordingly, we will not recommend enforcement action to the Commission if D.R. Horton omits the proposal..."

"...informal advice and suggestions and to determine, initially, whether or not it may be appropriate in a particular matter to recommend enforcement action to the Commission. In connection with a shareholder proposal..."

D.R. Horton, Inc.

October 23, 2012 • 2012 WL 4341090

"...personal claim or grievance against the company. Accordingly, we will not recommend enforcement action to the Commission if D.R. Horton omits the proposal..."

"...informal advice and suggestions and to determine, initially, whether or not it may be appropriate in a particular matter to recommend enforcement action to the Commission. In connection with a shareholder proposal..."

"...or the proponent's representative. Although Rule 14a-8(k) does not require any communications from shareholders to the Commission's staff, the staff will always consider information concerning alleged violations of the statutes administered by the Commission, including argument as to whether or not activities proposed to be taken would be violative of the statute or rule involved. The receipt by the staff of such information, however, should not be construed as changing the staff's informal procedures and proxy..."

"...views. The determinations reached in these no-action letters do not and cannot adjudicate the merits of a company's position with..."

Additional secondary sources

AGENCY POWER v. COURT DISCRETION: SHOULD COURTS HAVE THE DISCRETION TO NOT ENFORCE INJUNCTIVE RELIEF RECOMMENDED BY STATUTES?

Missouri Environmental Law & Policy Review • 9 Mo. Env'tl. L. & Pol'y Rev. 96

Congress enacted the Safe Drinking Water Act ("SDWA") in 1974 to ensure the purity of the nation's public drinking water supply. In 1986, Congress amended the SDWA, adding in part that disinfection would be mandatory for all public water providers and, in some cases, filtration would be required. The Environmental Protection Agency ("EPA") was to establish the criteria for which filtration would be required, which resulted in the Safe Water Treatment Rule ("SWTR") of 1989. Enforcement of the SDWA was allocated to the EPA. *United States v. Mass. Water Res. Auth.* presented the question of whether and to what extent courts have the discretion to enforce or not enforce injunctive relief suggested by a statute. The First Circuit's decision will provide future guidance for courts that will face similar situations in this relatively uncharted area of law. Plaintiff *United States*, on behalf of the EPA, brought a SDWA action for injunctive relief in the...

"...*United States v. Mass. Water Res. Auth.* presented the question of whether and to what extent courts have the discretion to enforce or not enforce injunctive relief suggested by a statute...."

"...[FN58] Although Congress can choose to guide, control, or even eliminate a court's discretion, the United States Supreme Court has held that they are "not lightly [to] assume that Congress has intended to depart from established principles."..."

"...[FN76] On appeal, the EPA argued when it has been shown that a water supplier has violated the SDWA and SWTR, courts do not have discretion to deny the statutory remedy...."

"...In *United States v. Mass. Water Res. Auth.*, the First Circuit Court of Appeals affirmed the District Court for the District of Massachusetts' holding that courts have discretion in deciding what equitable remedy should be granted for a violation of the SDWA and SWTR...."

II. THE FEDERAL FAIR HOUSING ACT AND POA POOLS

State Bar of Texas • 2020 Advanced Real Est. Drafting 21-II

Over thirty years ago, Congress passed the landmark Fair Housing Act of 1968 as Title VIII of the Civil Rights Act, which outlawed public and private discrimination in housing in the United States. The FHA is codified at 42 U.S.C. §§ 3601 - 3619 and originally served to prohibit housing discrimination against individuals in the following four (4) protected classes: race, color, religion, and national origin. In 1974, sex was added as a protected class and in 1988, the FHA was further amended to by adding two (2) additional protected classes - disability and familial status - both of which are of particular importance to POAs. POAs are subject to the FHA due to a key provision set forth in Section 3604(b) which makes it unlawful to discriminate in the "provision of services

or facilities" in connection with a "dwelling." Section 3604(b) provides that it shall be unlawful to: "Discriminate against any person in the terms, conditions,...

"...Under these revised amounts, individuals and entities such as POAs that violate the FHA can be assessed maximum civil penalties by HUD as follows: a. \$21,039 for a first violation of the FHA, b. \$52,596 for those who have had a previous FHA violation the past 5 years, and c. \$105,194 for those who have violated..."

"...Federal and state courts have consistently struck down "adults-only" swim time restrictions as discriminatory based on familial status under the FHA since such rules are based on age and not swimming ability...."

"...In regard to maximum penalty amounts, HUD published its new inflation-adjusted civil penalty amounts on May 15, 2019 for individuals or entities that have been found to have violated the FHA...."

"...The Department of Housing and Urban Development ("HUD") enforces the FHA and has stated that "housing providers may not impose rules which unreasonably limit the use of privileges, services, or facilities associated with a dwelling because of familial status."..."

PUBLIC POLICY FAVORITISM IN THE ONLINE WORLD: CONTRACT VOIDABILITY MEETS THE COMMUNICATIONS DECECY ACT

Texas Wesleyan Law Review • 17 Tex. Wesleyan L. Rev. 165

Introduction. 165 I. Section 230: The Statute and its Case Law. 167 A. Section 230 Basics: Why it was Enacted, How it Works, and the Policy Considerations Behind the Statute. 167 B. Section 230 Case Law. 170 II. Interactive Website Business Models and § 230. 174 III. One-Sided Public Policy Protection. 177 A. Public Policy Framework. 177 B. Applying the Second Restatement's Approach. 182 1. When the Operator Seeks to Enforce a Contract. 183 2. When the Content Provider Seeks to Enforce a Contract. 192 3. Result: One-sided Voidability. 194 C. Other Applications and Media Implications. 194 Conclusion. 196

"...This is particularly the case if the operator has not yet performed; not only has the ad not been displayed, but the content provider is forced to pay for it anyway...."

"...Furthermore, the underlying illegality test still provides broad immunity so long as courts do not adopt a strict liability approach--and the weight of § 230 case law indicates such an approach is not forthcoming...."

"... See, e.g., Warren People's Mkt. Co. v. Corbett & Sons, 151 N.E. 51, 53 (Ohio 1926) ("When a statute imposes specific penalties for its violation, where the act is not malum in se, and the purpose of the statute can be accomplished without declaring contracts in violation thereof illegal, the inference is that it was not the intention of the lawmakers to render such contracts illegal and unenforceable, and the court must examine the entire statute to discover whether the Legislature intended to prevent courts..."

"...Resorting to nonenforcement is not necessary to deter conduct that violates the FHA, and as explained above, the slight benefit derived from refusing enforcement would frustrate the public policy goals of § 230...."

Current awareness

Enforceability of Corporate Forum-Selection Bylaws Continues to Strengthen

Practitioner Insights Commentaries • 2016 WL 1397848

In recent years, corporations have responded to the threat of duplicative stockholder lawsuits in multiple courts across the country, as well as "forum shopping" by plaintiffs, by enacting forum-selection bylaws. Under these bylaws, shareholders must pursue deal litigation, breach of fiduciary duty claims and derivative lawsuits filed on behalf of the corporation in a particular jurisdiction established by the bylaws. The state of incorporation (most often Delaware) is commonly the required forum. Though these bylaws have been criticized and challenged legally, a growing number of courts across the U.S. have supported their enforceability.

"...The court further determined that, under the public interest factors at play in a forum non conveniens analysis, the CytRx forum-selection bylaw did not present one of those unusual cases where selection should not be enforced...."

"...In 2015, a federal court in the Central District of California (a popular forum of the plaintiffs' bar) departed from a prior California federal decision that refused to enforce a forum-selection bylaw...."

"...Unlike the prior courts that had addressed the enforceability of a forum-selection bylaw, however, the Central District of California followed the framework set forth by the U.S. Supreme Court in *Atlantic Marine Const.*..."

"...The expected result is that derivative plaintiffs who file in either a state or federal court will now face a growing body of case law that will compel them to adhere to corporate forum-selection bylaws...."

\$2.49 million verdict underscores expansive USERRA protections

Practitioner Insights Commentaries • 2023 WL 7347292

Attorneys Bradford Kelley and James McGhee of Littler Mendelson PC review a multimillion-dollar verdict for a U.S. Army veteran under the Uniformed Services Employment and Reemployment Rights Act and discuss the law's scope beyond other employment anti-discrimination laws.

"...This means that even if a service member would not have a claim under the ADA, they would be entitled to all of USERRA's protections if their military service caused or aggravated a disability...."

"...The case eventually landed at the U.S. Supreme Court, which in June 2022 held that state employers do not have sovereign immunity from USERRA suits because of the federal government's broad war powers. 1 Having cleared this hurdle, the case proceeded to trial late last month...."

"...Because courts often rely on Title VII case law to analyze USERRA claims, the evolving standards will likely make it easier for USERRA plaintiffs to challenge a wider range of employer practices...."

"...USERRA defines "disability" more broadly and covers any disability incurred or aggravated during military service, whereas the ADA's coverage of only those disabilities that meet the ADA's statutory definition of disability...."

SuperValu: lowering the hurdles to discovery

Practitioner Insights Commentaries • 2024 WL 824596

Hogan Lovells attorneys Gejaa Gobena, Mitchell Lazris, Emily Lyons and Jesse Suh suggest that the Supreme Court's SuperValu decision made it easier for the government and relators to sufficiently plead scienter in False Claims Act cases.

"...Likewise, in *United States ex rel. Souza v. Embrace Home Loans, Inc.*, the District of Rhode Island found that the plaintiff-relator had successfully stated an FCA claim against Embrace, a home loan provider, for claiming eligibility for FHA mortgage insurance for issuing loans that were noncompliant with HUD's underwriting requirements. 16..."

"...The district court explained that the defendants "cannot claim to know and have complied with HUD regulations while, on the other hand, have developed and implemented practices that led to the underwriting of dozens of loans that allegedly violated the same HUD regulations." 18..."

"...The court concluded that the plaintiff-relator had successfully pled scienter by alleging that the defendant's operating policies, including a "do not decline" policy and a "guaranteed on-time close" policy, created, by their very design, an inference of subjective knowledge that they were violating regulations. 17..."

"...For example, in *United States v. Chattanooga-Hamilton County Hospital Authority*, a court of the Eastern District of Tennessee found that the government had successfully pled an FCA claim against Erlanger, an operator of hospitals, for violating a Medicare regulation allowing reimbursement for "teaching-physician services" only "if the teaching physician personally provided the services, or if a resident provided the services while the teaching physician was present." 13..."

Follow-up question

2. Does the continuing violation doctrine apply to Fair Housing Act disability discrimination or failure-to-accommodate claims when the landlord refuses to act for an extended period?

The continuing violation doctrine may apply to Fair Housing Act (FHA) disability discrimination or failure-to-accommodate claims when a landlord refuses to act for an extended period, but its applicability depends on the specific circumstances of the case. Courts have recognized that certain ongoing discriminatory practices under the FHA can constitute continuing violations, while discrete acts of discrimination, such as outright denials of accommodation, are generally treated as separate and actionable events.

Applicability of the Continuing Violation Doctrine to FHA Claims

The Supreme Court in [Havens Realty Corp. v. Coleman](#) established that the continuing violation doctrine applies to FHA claims when the plaintiff challenges an ongoing unlawful practice rather than a single discrete act. The Court held that where a plaintiff alleges a continuing pattern or practice of discrimination that extends into the limitations period, the complaint is timely if filed within the statutory period following the last occurrence of the discriminatory practice. This approach reflects the broad remedial intent of the FHA and recognizes that ongoing violations differ from isolated incidents of discrimination ([Havens Realty Corp. v. Coleman, 455 U.S. 363 \(1982\)](#)) [1].

Similarly, the Fifth Circuit has applied the continuing violation doctrine to FHA claims, emphasizing the strong similarities between the FHA and Title VII in terms of language, design, and purpose. The doctrine is appropriate in cases where there is an organized scheme of discrimination leading to a present violation, and the cumulative effect of the discriminatory practice gives rise to the cause of action. For example, in [Petty v. Portofino Council of Coowners, Inc.](#), the court found that a continuing pattern of barring children from common areas constituted a permanent condition of discrimination under the FHA, allowing claims outside the statute of limitations to be considered as part of the ongoing violation ([Petty v. Portofino Council of Coowners, Inc., 702 F.Supp.2d 721 \(2010\)](#)) [2].

Discrete Acts Versus Continuing Violations

While the continuing violation doctrine can apply to FHA claims, courts have distinguished between ongoing discriminatory practices and discrete acts of discrimination. Discrete acts, such as a landlord's outright denial of a reasonable accommodation, are considered separate and actionable events that do not qualify as continuing violations. For instance, in [Sambrano v. United Airlines, Inc.](#), the court held that an employer's failure to provide accommodations is a discrete act and does not fall under the continuing violation doctrine. This reasoning aligns with the principle that discrete acts, even if related to other timely claims, are independently actionable and do not extend the limitations period ([Sambrano v. United Airlines, Inc., 707 F.Supp.3d 652 \(2023\)](#)) [3].

In the context of FHA failure-to-accommodate claims, courts have recognized that unreasonable delays in responding to accommodation requests can amount to constructive denials, which may be treated as ongoing violations. For example, in [Chavez v. Aber](#), the court noted that an indeterminate delay in granting a reasonable accommodation has the same effect as an outright denial, and a housing provider that unreasonably delays responding to a request may be found to have constructively denied the

accommodation. This suggests that prolonged inaction or "stonewalling" by a landlord could potentially be considered a continuing violation under the FHA ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [4].

Limitations on the Doctrine's Application

Despite its potential applicability, courts have imposed limits on the continuing violation doctrine. The Fifth Circuit has clarified that the doctrine requires the same type of discriminatory acts to occur both inside and outside the limitations period, creating a valid connection between them. The plaintiff must demonstrate more than a series of discriminatory acts; there must be an organized scheme leading to a present violation. Discrete acts, such as refusals to hire or promote, are not considered continuing violations, even if they are repeated over time ([Price v. Jefferson County](#), 470 F.Supp.2d 665 (2006)) [5].

In [Ortega v. Housing Authority of City of Brownsville](#) , the court declined to apply the continuing violation doctrine to FHA claims involving separate rejections of housing assistance applications. The court reasoned that each rejection constituted a discrete act of discrimination, independently actionable, and did not warrant extending the limitations period under the doctrine ([Ortega v. Housing Authority of City of Brownsville](#), 572 F.Supp.2d 829 (2008)) [6].

Summary of Application to Extended Refusals

When a landlord refuses to act on a reasonable accommodation request for an extended period, the continuing violation doctrine may apply if the refusal constitutes an ongoing discriminatory practice rather than a discrete act. Courts have recognized that prolonged delays or "stonewalling" can amount to constructive denials, which may be treated as continuing violations under the FHA. However, discrete acts of denial are generally not subject to the doctrine, and plaintiffs must file claims within the applicable limitations period for such acts. The specific facts of each case, including the nature and timing of the alleged discriminatory conduct, will determine whether the continuing violation doctrine applies.

Commentary about this question

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

The analysis addresses claims under the Fair Housing Act (FHA) pertaining to disability discrimination and failure-to-accommodate by landlords, including circumstances involving extended delays or refusal to act on accommodation requests. It outlines the elements required to establish a failure-to-accommodate claim: plaintiff's disability, landlord's knowledge, the necessity and reasonableness of the accommodation, and refusal by the landlord. Case law references emphasize that denial by delay or lack of meaningful response may constitute constructive denial. The document also discusses HUD and federal court interpretations of reasonable accommodation, the importance of objective evidence, landlord obligations, and defenses such as direct threat. Notably, the material cites federal cases applicable to Texas federal jurisdiction and covers the nuances of accommodation requests, specifying that unreasonable delay can have the same effect as outright denial under the FHA, relevant to continuing violation concepts.

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

This legal analysis addresses the applicability of the continuing violation doctrine under the Fair Housing Act (FHA), particularly in disability discrimination and failure-to-accommodate claims related to housing. It highlights the Supreme Court's ruling in *Havens Realty Corp. v. Coleman*, establishing that claims alleging a pattern or practice of discrimination remain timely if any discriminatory acts occur within the statutory limitations period. The continuing violation doctrine is differentiated from discrete acts, allowing plaintiffs to challenge ongoing discriminatory practices, such as a landlord's refusal to provide accommodations over an extended period. The discussion underscores courts' recognition of ongoing duties by property owners and managers, including those not involved in original construction, to ensure accessibility compliance, and how failure to act can constitute continuing violations. The document further confirms no requirement to identify specific discriminatory incidents or individuals when alleging policies or practices causing systematic harm, supporting organizational standing. The principles are applicable in federal and Texas state contexts, given the federal FHA framework and relevant case law.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. **Havens Realty Corp. v. Coleman**

Supreme Court of the United States • February 24, 1982 • 455 U.S. 363 • 102 S.Ct. 1114

"...IV. Petitioners argue that even if respondents do have standing to sue under the Fair Housing Act, their claims are time-barred under S 812(a) of the Fair Housing Act, 42 U.S.C. S 3612(a). That section requires that a civil suit be brought within 180 days after the alleged occurrence of a discriminatory housing practice. As petitioners note, although five different specific incidents allegedly in violation of the Fair Housing Act are detailed in the complaint, the four involving Coleman occurred more than 180 days before the complaint was filed, and the fifth, which was within 180 days of filing, involved only Coles, whose claims are already the subject of a consent order entered by the District Court. The Court of Appeals, adopting a "continuing violation" theory, held that because the Coles incident fell within the limitations period, none of the claims was barred...."

"...IV. We agree with the Court of Appeals that for purposes of S 812(a), a "continuing violation" of the Fair Housing Act should be treated differently from one discrete act of discrimination. Statutes of limitations such as that contained in S 812(a) are intended to keep stale claims out of the courts. See *Chase Securities Corp. v. Donaldson*, 325 U.S. 304, 314, 65 S.Ct. 1137, 1142, 89 L.Ed. 1628 (1945). Where the challenged violation is a continuing one, the staleness concern disappears. Petitioners' wooden application of S 812(a), which ignores the continuing nature of the alleged violation, only undermines the broad remedial intent of Congress embodied in the Act, see *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 417, 88 S.Ct. 2186, 2191, 20 L.Ed.2d 1189 (1968). Cf. *Zipes v. Trans World Airlines, Inc.*, 455 U.S. 398, 102 S.Ct. 1127, 71 L.Ed.2d 234. Like the Court of Appeals, we therefore conclude that where a plaintiff, pursuant to the Fair Housing Act, challenges not just one incident of conduct violative of the Act, but an unlawful practice that continues into the limitations period, the complaint is timely when it is filed within 180 days of the last asserted occurrence of that practice...."

"...Individuals' claims that apartment owner's continuing pattern, practice, and policy of unlawful racial steering had deprived them of benefits of interracial association arising from living in integrated neighborhood and organization's claims that those practices damaged its ability to provide counseling and referral services for low and moderate income homeseekers alleged continuing violation and where one violation illustrative of that practice

occurred within 180-day limitations period of Fair Housing Act, individuals' and organization's claims were not time barred. Civil Rights Act of 1968, S 812(a) as amended 42 U.S.C.A. S 3612(a)...."

"...Where plaintiff, pursuant to Fair Housing Act, challenges not just one incident of conduct violative of Act, but unlawful practice that continues into limitations period, complaint is timely when it is filed within 180 days of last asserted occurrence of that practice. Civil Rights Act of 1968, S 812(a) as amended 42 U.S.C.A. S 3612(a)...."

2. **Petty v. Portofino Council of Coowners, Inc.**

United States District Court, S.D. Texas, Corpus Christi Division. • March 12, 2010 • 702 F.Supp.2d 721 • 2010 WL 918740

"...I. Statute of Limitations for Plaintiffs' Fair Housing Act and Intention Infliction of Emotional Distress Claims. The Fifth Circuit applies the continued violations doctrine in Title VII discrimination cases where there is "an organized scheme leading to and including a present violation, such that it is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action." See *Huckabay v. Moore*, 142 F.3d 233, 239 (5th Cir.Tex.1998); see also *Berry v. Bd. Of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Given the "strong similarities between the language, design, and purposes of Title VII and the Fair Housing Act," it is appropriate to apply the continued violation doctrine to Plaintiffs' Fair Housing Act claims. See *Holt v. JTM Indus.*, 89 F.3d 1224, 1229 (5th Cir.1996) (applying Title VII case law to interpret language in the Fair Housing Act)...."

"...Given strong similarities between language, design, and purposes of Title VII and Fair Housing Act (FHA), it is appropriate to apply continued violation doctrine to FHA claims. Civil Rights Act of 1964, S 701 et seq., 42 U.S.C.A. S 2000e et seq.; Fair Housing Act, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...I. Statute of Limitations for Plaintiffs' Fair Housing Act and Intention Infliction of Emotional Distress Claims. Assuming that Plaintiffs allegations are correct, Defendant has, on a continuing basis, prevented Plaintiffs' children from using the common areas, including barring children from the elevator, pool, lobby and workout room. (D.E. 14, P 6, 12-14, 16.) The cumulative effect of this discrimination has created a permanent condition where children are steered away from the complex's common areas. See *Berry*, 715 F.2d at 981 (finding claims that occurred outside the statute of limitation may be used to show continued discrimination when the discrimination "was all of the same sort, it was continual, and it was a permanent condition"). Plaintiffs have thus properly alleged a continued violation of the Fair Housing Act and their allegations may remain part of the Complaint as evidence of continued violations of the Fair Housing Act. See *Huckabay*, 142 F.3d at 239...."

3. **Sambrano v. United Airlines, Inc.**

United States District Court, N.D. Texas, Fort Worth Division. • December 18, 2023 • 707 F.Supp.3d 652 • 2023 WL 8721437

"...1. Medlin, Rains, and Castillo's claims are time-barred. Under the continuing violation doctrine, plaintiffs do not have to show all alleged discriminatory conduct occurred within the actionable period if they demonstrate a series of related discriminatory acts, one or more of which fall in the limitations period. See *Felton v. Polles*, 315 F.3d 470, 487 (5th Cir. 2002). Discrete discriminatory acts, however, are not actionable if time-barred, even when they are related to acts complained of in timely filed charges. See *Nat'l R.R. Passenger Corp. v. Morgan*, 536 U.S. 101, 113, 122 S.Ct. 2061, 153 L.Ed.2d 106 (2002). Some discrete acts are easy to identify, including "failure to promote, denial of transfer, or refusal to hire." *Id.* at 114, 122 S.Ct. 2061. Similarly, an employer's "failure to provide accommodations" is a discrete act that does not qualify under the continuing violation doctrine. See *Henson v. Bell Helicopter Textron, Inc.*, 128 F. App'x 387, 391 (5th Cir. 2005). Accordingly, United's denial of Medlin's

accommodation request was not a continuing violation, it was a discrete act. Even though Medlin did not require an accommodation until she returned to work-she was on maternity leave when she requested an accommodation-United's denial of her request occurred well before the 300-day window of her EEOC charge. Accordingly, Medlin's failure-to-accommodate claim is time-barred and must be DISMISSED. Insofar as she argues that her termination constituted retaliation for her engaging in a protected activity, her retaliation claim is not time barred, but it fails for other reasons. See supra Part (C)(2)...."

"...An employer's failure to provide accommodations is a discrete discriminatory act that does not qualify to render time-barred Title VII claims actionable under the continuing violation doctrine. Civil Rights Act of 1964 S 701 et seq., 42 U.S.C.A. S 2000e et seq...."

"...1. Medlin, Rains, and Castillo's claims are time-barred. Next, Plaintiffs argue that Rains's formal November 3, 2022 charge was timely because United engaged in an "ongoing violation" throughout the period that Rains received an inadequate accommodation. But as discussed above, an employer's "failure to provide accommodations" are discrete acts (that) do not qualify under the continuing violation exception." Henson, 128 F. App'x at 391. Accordingly, United's alleged failure to accommodate Rains was not a continuing violation and his November 3, 2022 EEOC charge was not timely filed. Rains's claims must be DISMISSED...."

4. Chavez v. Aber

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...iii. Plaintiffs sufficiently pleaded that Defendants refused to make the requested accommodation. Under the FHA, a landlord may not refuse "to make reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford (handicapped) person(s) equal opportunity to use and enjoy a dwelling." See City of Edmonds, 514 U.S. at 729, 115 S.Ct. 1776. "(D)enial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial." Groome Res., 234 F.3d at 199. Accordingly, "a housing provider that refuses to make a decision . could be found to have constructively denied the request by 'stonewalling' and short-circuiting the (interactive) process." See Overlook Mut., 415 Fed.Appx. at 621. Further, "injury may result when a housing provider unreasonably delays responding to a request for accommodation and . such delay may amount to a denial." Id. at 622; see also Sabal Palm Condo. of Pine Island Ridge Ass'n, Inc. v. Fischer, 6 F.Supp.3d 1272, 1293 (S.D.Fla.2014) ("(C)ontinuing to delay for months and asking for even more information amounts to a constructive denial.")...."

5. Price v. Jefferson County

United States District Court, E.D. Texas, Beaumont Division. • September 20, 2006 • 470 F.Supp.2d 665 • 2006 WL 3933330

"...b. Continuing Violation Theory. "The doctrine ' "requires the same type of discriminatory acts to occur both inside and outside the limitations period," such that a valid connection exists between them.' " Felton, 315 F.3d at 485 (emphasis in original) (quoting Celestine v. Petroleos de Venezuela SA, 266 F.3d 343, 352 (5th Cir.2001) (quoting Estate of Martineau v. ARCO Chem. Co., 203 F.3d 904, 913 (5th Cir.2000))). "Although there is no definitive standard for what constitutes a continuing violation, the plaintiff must demonstrate more than a series of

discriminatory acts. (She) must show an organized scheme leading to and including a present violation." *Huckabay v. Moore*, 142 F.3d 233, 239 (5th Cir.1998); see *Celestine*, 266 F.3d at 352; *Berry v. Board of Supervisors*, 715 F.2d 971, 981 (5th Cir.1983), cert. denied, 479 U.S. 868, 107 S.Ct. 232, 93 L.Ed.2d 158 (1986). "(I)t is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action." *Huckabay*, 142 F.3d at 239; see *National R.R. Passenger Corp. v. Morgan*, 536 U.S. 101, 118, 122 S.Ct. 2061, 153 L.Ed.2d 106 (2002); *Messer*, 130 F.3d at 135; *Glass*, 757 F.2d at 1561. "The end goal of the continuing violation theory is to 'accommodate plaintiffs who can show that there has been a pattern or policy of discrimination continuing from outside the limitations period into the statutory limitations period' " and then " 'all of the discriminated acts committed as part of this pattern or policy can be considered timely.' " *Pegram v. Honeywell, Inc.*, 361 F.3d 272, 279 (5th Cir.2004) (quoting *Celestine*, 266 F.3d at 352); see also *Yerby v. University of Houston*, 230 F.Supp.2d...

6. *Ortega v. Housing Authority of City of Brownsville*

United States District Court, S.D. Texas, Brownsville Division. • January 03, 2008 • 572 F.Supp.2d 829 • 2008 WL 3583489

"...B. Continued Violation. As the Supreme Court explained in *Morgan*, the continued violations doctrine applies where actions taken by a defendant are not complete on a given day. 536 U.S. at 114, 122 S.Ct. 2061. In comparison, denials of promotion or transfer are distinct actions and do not warrant the application of the doctrine. *Id.* Therefore, application of the continued violations doctrine to Defendant's separate actions denying Plaintiff housing assistance would be inconsistent with the rationale behind the doctrine. In 2004, when Plaintiff's voucher expired and Defendant did not grant year-long housing assistance, Defendant committed a discrete act of discrimination based on familial status. Although it happened again two years later, the doctrine of continue violations does not apply. The events are simply two discrete acts, each independently actionable. As such, the Court will not extend the starting date of the statute of limitations to 2006...."

"...Continued violations doctrine did not toll statutory period for public housing applicant's claim that city's legal guardianship requirement violated Fair Housing Act and constituted unlawful discrimination based on familial status, even though city maintained same policy for years, and rejected applicant's subsequent application on same basis, where rejections were separated by two years, and each rejection was sufficiently permanent to trigger reasonable person to act to protect his rights. Fair Housing Act, S 813(a)(1)(A), 42 U.S.C.A. S 3613(a)(1)(A)...."

"...B. Continued Violation. In the alternative, Plaintiff contends that the statute of limitations did not begin until 2006. Plaintiff asserts that because Defendant maintained the same policy of requiring legal guardianship for minors and subsequently in 2006 Plaintiff was again denied a voucher, Defendant's conduct constituted a continued violation. Dkt. No. 19, at 26. The Fifth Circuit has not yet applied the doctrine of continued violations to violations under the FHA. However, the crux of this case is discrimination and the Fifth Circuit has consistently applied the continued violations doctrine in other discrimination contexts. See *Berry v. Bd. of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Therefore, this Court will consider the application of the doctrine in this context...."

"...Background: Public housing applicant brought action alleging that city's legal guardianship requirement violated Fair Housing Act and constituted unlawful discrimination based on familial status, and that city violated applicant's procedural due process rights. Parties filed cross-motions for summary judgment. Holdings: The District Court, Hilda G. Tagle, J., held that: statutory period for applicant's discrimination claim commenced when city allowed his sixty-day Section 8 housing voucher to lapse; continued violations doctrine did not toll statutory

period; and city's legal guardianship requirement violated Fair Housing Act's prohibition against discriminatory housing practices based on familial status. Motions granted in part and denied in part...."

7. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A denial of a reasonable accommodation in violation of the Fair Housing Act (FHA) can be actual or constructive, as an indeterminate delay has the same effect as an outright denial. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

8. **Piraino v. U.S. Postal Service**

United States District Court, E.D. Texas, Beaumont Division. • October 08, 1999 • 69 F.Supp.2d 889 • 1999 WL 825276

"...C. Continuing Violation Doctrine. The "separate repeated" type of continuing violation is an exception to the rule that discrete acts of a permanent nature such as a refusal to hire, "do not generally trigger application of the continuing violations doctrine." Washington v. Touro Infirmary, Inc., No. CIV.A.97-38235, 1998 WL 754540, at *4 n. 1 (E.D.La. Oct.26, 1998) (citing Huckabay, 142 F.3d at 239). The "separate repeated" type of continuing violation is a series of repeated employment decisions, for example, a refusal to hire or rehire or repeatedly hiring white applicants after refusing to hire black applicants with the same qualifications. Such violations are considered separate and distinct acts of discrimination from which "the limitations period begins anew with each violation." Perez, 706 F.2d at 733 (holding that if college discriminatorily denied faculty member additional compensation, there could be a continuing violation every time another faculty member was paid on a different basis); see also Galan, 868 F.2d at 168 (holding that repeated garnishment of plaintiff's wages created a continuing violation of plaintiff's due process rights)...."

9. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...In considering whether a defendant's actions were retaliatory, for purposes of provision of Fair Housing Act (FHA) making it unlawful to coerce, intimidate, threaten, or interfere with any person in exercise or enjoyment of any right separately protected by FHA, a court may consider whether the temporal proximity between the request for an accommodation and the defendant's allegedly retaliatory behavior is sufficient to state that a causal connection exists between the protected activity and the adverse action. 42 U.S.C.A. S 3617...."

10. **Ryals v. American Airlines, Inc.**

United States Court of Appeals, Fifth Circuit. • January 27, 2014 • 553 Fed.Appx. 402 • 2014 WL 279756

"...I. Whether the district court erred in denying the application of the continuing violation doctrine, thus excluding acts that occurred more than 300 days before Appellant's initial complaint to the EEOC? .II. Whether the admissible evidence establishes a genuine issue of material fact from which a jury could conclude that Appellant

suffered a violation of the law?. Stewart, 586 F.3d at 328. However, this continuing violation doctrine is limited as follows:..."

11. **Burrell v. Crown Cent. Petroleum, Inc.**

United States District Court, E.D. Texas, Beaumont Division. • April 02, 2003 • 255 F.Supp.2d 591 • 2003 WL 1785771

"...VI. Statute of Limitations Under Title VII and S 1981 and the Continuing Violation Doctrine. A second variation of this first application of the doctrine is referred to as a "separate repeated" continuing violation. This type of continuing violation occurs when "an initial violation, outside the statute of limitations, is repeated later; in this case, each violation begins the limitations period anew, and recovery may be had for at least those violations that occurred within the period of limitations." Hendrix, at 1103. These violations are considered separate and distinct acts of discrimination. Although this is referred to as an application of the continuing violation doctrine, it does not actually revive or connect any time barred discrimination or allow the barred conduct to be a basis for a discrimination claim. Under this theory, a plaintiff is only allowed to complain of incidents within the full limitations period preceding the filing of the complaint. See *Perez v. Laredo Junior Coll.*, 706 F.2d 731, 733-34 (5th Cir.1983)...."

12. **Heath v. Board of Supervisors for Southern University and Agricultural and Mechanical College**

United States Court of Appeals, Fifth Circuit. • March 08, 2017 • 850 F.3d 731 • 2017 WL 923408

"...II .A. Nor have our published post-Morgan decisions. The test they apply for assessing the viability of a continuing violation theory does not include the factor considering whether the plaintiff should have filed her complaint earlier. See, e.g., *Pegram v. Honeywell, Inc.*, 361 F.3d 272, 279 (5th Cir. 2004) (noting that Morgan "clarified the limits of the continuing violations doctrine," and not stating or applying a notice factor). For example, *Stewart v. Mississippi Transport Commission*, 586 F.3d 321 (5th Cir. 2009), identifies three limits on the continuing violation doctrine: (1) the plaintiff must demonstrate that the separate acts are related; (2) the violation must be continuing; intervening action by the employer, among other things, will sever the acts that preceded it from those subsequent to it; and (3) the doctrine may be tempered by the court's equitable powers, which must be exercised to "honor Title VII's remedial purpose without negating the particular purpose of the filing requirement." *Id.* at 328 (internal quotation marks and citation omitted). There is no mention of whether an act outside the 300 day period "ha(s) the degree of permanence which should trigger an employee's awareness of and duty to assert his or her rights." *Celestine I*, 266 F.3d at 352. Other continuing violation decisions have applied *Stewart*. See *Ryals v. Am. Airlines, Inc.*, 553 Fed.Appx. 402, 405 (5th Cir. 2014); *Filer v. Donley*, 690 F.3d 643, 647 (5th Cir. 2012); see also *E.E.O.C. v. Rock-Tenn Servs. Co.*, 901 F.Supp.2d 810, 823 (N.D. Tex. 2012) (recognizing that *Stewart* makes clear that "the continuing violation doctrine with respect to hostile work environment claims is more properly addressed through a post-Morgan lens" than through *Celestine I*)...."

13. **Robinson v. City of Friendswood**

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Reasonable governmental limitations may continue under Fair Housing Act (FHA) as long as they treat all citizens equally and do not in effect discriminate against handicapped. Civil Rights Act of 1968, S 801 et seq., as amended, 42 U.S.C.A. S 3601 et seq...."

14. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...Claim under Fair Housing Act (FHA) or Title II of ADA for failure to make reasonable accommodation arises when plaintiffs are not granted reasonable accommodation that is necessary to allow them to have usage and enjoyment in facility equivalent to individuals who are not disabled. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132; Civil Rights Act of 1968, S 802, 42 U.S.C.A. S 3602(f)...."

15. **§ 3617. Interference, coercion, or intimidation**

42 USCA § 3617

"...It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by section 3603, 3604, 3605, or 3606 of this title...."

Additional Research on This Topic

16. **§ 3602. Definitions**

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title. (g) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

17. **§ 3604. Discrimination in the sale or rental of housing and other prohibited practices**

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (A) a refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted. (FN2)..."

18. § 3613. Enforcement by private persons**42 USCA § 3613**

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

19. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)..."

Follow-up question

3. Do federal courts or HUD/DOJ treat each day of noncompliance with a Fair Housing Act reasonable-accommodation requirement as a separate violation for civil penalty purposes?

Federal courts and agencies such as the Department of Housing and Urban Development (HUD) and the Department of Justice (DOJ) have addressed the issue of whether each day of noncompliance with a Fair Housing Act (FHA) reasonable-accommodation requirement constitutes a separate violation for civil penalty purposes. This question is closely tied to the application of the continuing violation doctrine in failure-to-accommodate claims under the FHA.

Treatment of Each Day of Noncompliance as a Separate Violation

Under the FHA, it is unlawful to refuse to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford disabled individuals an equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [\(f\)\(3\)\(B\)](#) . Courts have recognized that a denial of a reasonable accommodation can be either actual or constructive, with an indeterminate delay in responding to a request for accommodation having the same effect as an outright denial ([42 U.S.C.A. § 3604](#)) [1], ([Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [2]. For example, in ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [3], the Fifth Circuit held that a violation of the FHA occurs when a disabled resident is first denied a reasonable accommodation, whether the denial is actual or constructive, and irrespective of remedies granted in subsequent proceedings [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#) .

The concept of a continuing violation under the FHA has been addressed in cases such as ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [3], where the Supreme Court held that a continuing violation should be treated differently from a discrete act of discrimination. The Court emphasized that when a plaintiff challenges an ongoing unlawful practice under the FHA, the complaint is timely if filed within the limitations period following the last occurrence of the practice [Havens Realty Corp. v. Coleman](#) . This principle supports the idea that ongoing noncompliance with FHA requirements may constitute a continuing violation rather than discrete, separate violations for each day of noncompliance.

Application of the Continuing Violation Doctrine in Failure-to-Accommodate Claims

The continuing violation doctrine has been applied in FHA cases to address ongoing discriminatory practices. For instance, in ([Havens Realty Corp. v. Coleman](#), 455 U.S. 363 (1982)) [4], the Fifth Circuit recognized the appropriateness of applying the continuing violation doctrine to FHA claims due to the strong similarities between the FHA and Title VII of the Civil Rights Act [Petty v. Portofino Council of Coowners, Inc.](#) . The court noted that the cumulative effect of ongoing discrimination could create a permanent condition that constitutes a continuing violation ([Petty v. Portofino Council of Coowners, Inc.](#), 702 F.Supp.2d 721 (2010)) [5].

However, courts have also distinguished between continuing violations and discrete acts of discrimination. In ( [Petty v. Portofino Council of Coowners, Inc.](#), 702 F.Supp.2d 721 (2010)) [5], the court declined to apply the continuing violation doctrine to separate instances of housing assistance denial, reasoning that each rejection was a discrete act and independently actionable [Ortega v. Housing Authority of City of Brownsville](#) . This distinction is significant in determining whether each day of noncompliance with a reasonable-accommodation requirement under the FHA constitutes a separate violation or is part of a continuing violation.

Implications for Civil Penalty Assessment

The determination of whether each day of noncompliance constitutes a separate violation for civil penalty purposes depends on whether the conduct is viewed as a series of discrete acts or as a continuing violation. If the noncompliance is considered a continuing violation, the statute of limitations may be tolled, and the violation may be treated as a single, ongoing discriminatory practice. This approach aligns with the FHA's broad remedial intent to address systemic discrimination and ensure equal housing opportunities for disabled individuals ([Ortega v. Housing Authority of City of Brownsville](#), 572 F.Supp.2d 829 (2008)) [6].

In summary, federal courts and agencies have recognized that noncompliance with FHA reasonable-accommodation requirements can constitute a continuing violation under certain circumstances. However, whether each day of noncompliance is treated as a separate violation for civil penalty purposes depends on the specific facts of the case and whether the conduct is deemed a discrete act or part of an ongoing discriminatory practice.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. [§ 3604. Discrimination in the sale or rental of housing and other prohibited practices](#)

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (B) a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or..."

2. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Injury may result when a housing provider unreasonably delays responding to a request for accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, and such delay may amount to a denial under Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...iii. Plaintiffs sufficiently pleaded that Defendants refused to make the requested accommodation. Under the FHA, a landlord may not refuse "to make reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford (handicapped) person(s) equal opportunity to use and enjoy a dwelling." See *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776. "(D)enial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial." *Groome Res.*, 234 F.3d at 199. Accordingly, "a housing provider that refuses to make a decision . could be found to have constructively denied the request by 'stonewalling' and short-circuiting the (interactive) process." See *Overlook Mut.*, 415 Fed.Appx. at 621. Further, "injury may result when a housing provider unreasonably delays responding to a request for accommodation and . such delay may amount to a denial." *Id.* at 622; see also *Sabal Palm Condo. of Pine Island Ridge Ass'n, Inc. v. Fischer*, 6 F.Supp.3d 1272, 1293 (S.D.Fla.2014) ("(C)ontinuing to delay for months and asking for even more information amounts to a constructive denial.")...."

3. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A denial of a reasonable accommodation in violation of the Fair Housing Act (FHA) can be actual or constructive, as an indeterminate delay has the same effect as an outright denial. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...III. RIPENESS. First, as to the "fitness of the issues for judicial decision," we agree with the Court of Appeals for the Fourth Circuit that "(u)nder the Fair Housing Act . a violation occurs when the disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings." *Bryant Woods Inn, Inc. v. Howard County, Md.* 124 F.3d 597, 602 (4th Cir.1997). This denial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. In the instant case, the district court was well within its discretion to decide that a reasonable accommodation was denied by the unjustified delay of the Parish officials...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

4. **Havens Realty Corp. v. Coleman**

Supreme Court of the United States • February 24, 1982 • 455 U.S. 363 • 102 S.Ct. 1114

"...IV. We agree with the Court of Appeals that for purposes of S 812(a), a "continuing violation" of the Fair Housing Act should be treated differently from one discrete act of discrimination. Statutes of limitations such as that contained in S 812(a) are intended to keep stale claims out of the courts. See *Chase Securities Corp. v. Donaldson*, 325 U.S. 304, 314, 65 S.Ct. 1137, 1142, 89 L.Ed. 1628 (1945). Where the challenged violation is a continuing one, the staleness concern disappears. Petitioners' wooden application of S 812(a), which ignores the continuing nature of the alleged violation, only undermines the broad remedial intent of Congress embodied in the Act, see *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 417, 88 S.Ct. 2186, 2191, 20 L.Ed.2d 1189 (1968). Cf. *Zipes v. Trans World Airlines, Inc.*, 455 U.S. 398, 102 S.Ct. 1127, 71 L.Ed.2d 234. Like the Court of Appeals, we therefore conclude that where a plaintiff, pursuant to the Fair Housing Act, challenges not just one incident of conduct violative of the Act, but an unlawful practice that continues into the limitations period, the complaint is timely when it is filed within 180 days of the last asserted occurrence of that practice...."

5. **Petty v. Portofino Council of Coowners, Inc.**

United States District Court, S.D. Texas, Corpus Christi Division. • March 12, 2010 • 702 F.Supp.2d 721 • 2010 WL 918740

"...I. Statute of Limitations for Plaintiffs' Fair Housing Act and Intention Infliction of Emotional Distress Claims. The Fifth Circuit applies the continued violations doctrine in Title VII discrimination cases where there is "an organized scheme leading to and including a present violation, such that it is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action." See *Huckabay v. Moore*, 142 F.3d 233, 239 (5th Cir.Tex.1998); see also *Berry v. Bd. Of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Given the "strong similarities between the language, design, and purposes of Title VII and the Fair Housing Act," it is appropriate to apply the continued violation doctrine to Plaintiffs' Fair Housing Act claims. See *Holt v. JTM Indus.*, 89 F.3d 1224, 1229 (5th Cir.1996) (applying Title VII case law to interpret language in the Fair Housing Act)...."

"...Given strong similarities between language, design, and purposes of Title VII and Fair Housing Act (FHA), it is appropriate to apply continued violation doctrine to FHA claims. Civil Rights Act of 1964, S 701 et seq., 42 U.S.C.A. S 2000e et seq.; Fair Housing Act, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...I. Statute of Limitations for Plaintiffs' Fair Housing Act and Intention Infliction of Emotional Distress Claims. Assuming that Plaintiffs allegations are correct, Defendant has, on a continuing basis, prevented Plaintiffs' children from using the common areas, including barring children from the elevator, pool, lobby and workout room. (D.E. 14, P 6, 12-14, 16.) The cumulative effect of this discrimination has created a permanent condition where children are steered away from the complex's common areas. See *Berry*, 715 F.2d at 981 (finding claims that occurred outside the statute of limitation may be used to show continued discrimination when the discrimination "was all of the same sort, it was continual, and it was a permanent condition"). Plaintiffs have thus properly alleged a continued violation of the Fair Housing Act and their allegations may remain part of the Complaint as evidence of continued violations of the Fair Housing Act. See *Huckabay*, 142 F.3d at 239...."

6. **Ortega v. Housing Authority of City of Brownsville**

United States District Court, S.D. Texas, Brownsville Division. • January 03, 2008 • 572 F.Supp.2d 829 • 2008 WL 3583489

"...B. Continued Violation. As the Supreme Court explained in *Morgan*, the continued violations doctrine applies where actions taken by a defendant are not complete on a given day. 536 U.S. at 114, 122 S.Ct. 2061. In comparison, denials of promotion or transfer are distinct actions and do not warrant the application of the doctrine. *Id.* Therefore, application of the continued violations doctrine to Defendant's separate actions denying Plaintiff housing assistance would be inconsistent with the rationale behind the doctrine. In 2004, when Plaintiff's voucher expired and Defendant did not grant year-long housing assistance, Defendant committed a discrete act of discrimination based on familial status. Although it happened again two years later, the doctrine of continued violations does not apply. The events are simply two discrete acts, each independently actionable. As such, the Court will not extend the starting date of the statute of limitations to 2006...."

"...Continued violations doctrine did not toll statutory period for public housing applicant's claim that city's legal guardianship requirement violated Fair Housing Act and constituted unlawful discrimination based on familial status, even though city maintained same policy for years, and rejected applicant's subsequent application on same basis, where rejections were separated by two years, and each rejection was sufficiently permanent to trigger reasonable person to act to protect his rights. Fair Housing Act, S 813(a)(1)(A), 42 U.S.C.A. S 3613(a)(1)(A)...."

"...B. Continued Violation. In the alternative, Plaintiff contends that the statute of limitations did not begin until 2006. Plaintiff asserts that because Defendant maintained the same policy of requiring legal guardianship for minors and subsequently in 2006 Plaintiff was again denied a voucher, Defendant's conduct constituted a continued violation. Dkt. No. 19, at 26. The Fifth Circuit has not yet applied the doctrine of continued violations to violations under the FHA. However, the crux of this case is discrimination and the Fifth Circuit has consistently applied the continued violations doctrine in other discrimination contexts. See *Berry v. Bd. of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Therefore, this Court will consider the application of the doctrine in this context...."

7. Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...A defendant's constructive denial of a requested accommodation, for purposes of provision of Fair Housing Act (FHA) prohibiting refusal to make reasonable accommodation in rules, policies, practices, or services when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, may be found where the defendant fails to make a timely determination after meaningful review. 42 U.S.C.A. S 3604(f)(3)(B)...."

"...a. Intentional Discrimination: S 3604(f)(1). Similarly, Plaintiffs raise *Castillo* as showing that "threatening fines" may constitute making housing unavailable "as a practical matter." Docket no. 12 at 17 (citing *Castillo Condo. Ass'n v. U.S. Dep't of Hous. and Urb. Dev.*, 821 F.3d 92 (1st Cir. 2016)). But in *Castillo*, the First Circuit did not find that the fines caused the unavailability; rather, the defendant's refusal to allow the plaintiff to keep his service animal caused the unavailability. *Castillo*, 821 F.3d at 98 ("Substantial evidence supports the Secretary's finding that the Association's refusal to allow Gimenez to keep an emotional support dog in his condominium unit as a reasonable accommodation for his disability was unlawful. That refusal made Gimenez's home unavailable to him as a practical matter and, thus, violated the (FHA)."). Thus, the FHA violation was the refusal to make a reasonable accommodation, not the mere imposition of fines...."

8. Keenan v. River Oaks Property Owners, Inc.

Court of Appeals of Texas, Houston (1st Dist.). • March 17, 2022 • Not Reported in S.W. Rptr. • 2022 WL 802989

"...4. Fair-Housing Counterclaim. Here, the evidence shows that it was not until two years after ROPO's March 19, 2013 rejection of Keenan's Proposal 2, eighteen months after litigation had commenced, and only in response to a motion to compel, that she first revealed the identity of her mother-in-law to ROPO and the nature of her handicap. Thus, ROPO's summary-judgment evidence establishes that Keenan did not, before ROPO denied her requested accommodation, identify to ROPO any individual as "handicapped," as defined by the FHAA. See 42 U.S.C. S 3604(f)(1), (2), (3)(B); Groome Res., 234 F.3d at 199 ("Under the Fair Housing Act . a violation occurs when the disabled resident is first denied a reasonable accommodation.")...."

9. Heinert v. Wichita Falls Housing Authority

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...As a general rule, federal laws requiring reasonable accommodations for the disabled all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

10. Robinson v. City of Friendswood

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Reasonable governmental limitations may continue under Fair Housing Act (FHA) as long as they treat all citizens equally and do not in effect discriminate against handicapped. Civil Rights Act of 1968, S 801 et seq., as amended, 42 U.S.C.A. S 3601 et seq...."

11. Swanston v. City of Plano, Texas

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...Claim under Fair Housing Act (FHA) or Title II of ADA for failure to make reasonable accommodation arises when plaintiffs are not granted reasonable accommodation that is necessary to allow them to have usage and enjoyment in facility equivalent to individuals who are not disabled. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132; Civil Rights Act of 1968, S 802, 42 U.S.C.A. S 3602(f)...."

12. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use

and enjoy a dwelling." Id. S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)...."

13. **U.S. v. Forest Dale, Inc.**

United States District Court, N.D. Texas, Dallas Division. • March 05, 1993 • 818 F.Supp. 954 • 1993 WL 127713

"...Once the Department of Housing and Urban Development (HUD) determined that reasonable cause existed to charge operators of public housing project for the elderly with handicap discrimination, HUD issued its charge, and operators elected to litigate discrimination claim in district court, Attorney General was required to file suit within 30 days. National Housing Act, S 202, as amended, 12 U.S.C.A. S 1701q; Civil Rights Act of 1968, S 812(a, o), as amended, 42 U.S.C.A. S 3612(a, o)...."

14. **Avalon Residential Care Homes, Inc. v. City of Dallas**

United States District Court, N.D. Texas, Dallas Division. • December 18, 2000 • 130 F.Supp.2d 833 • 2000 WL 33152058

"...Three theories of liability exist to establish Fair Housing Act (FHA) violation: (1) disparate treatment, or intentional discrimination; (2) disparate impact, or discriminatory effect; and (3) failure of municipality to make reasonable accommodation. Civil Rights Act of 1968, SS 802(h), 804, as amended, 42 U.S.C.A. SS 3602(h), 3604...."

15. **Ryan v. Ramsey**

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

Additional Research on This Topic

16. **APPENDIX C TO PART 36—GUIDANCE ON ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND IN COMMERCIAL FACILITIES ORIGINALLY PUBLISHED ON JULY 26, 1991.**

28 CFR Pt. 36, App. C

"...Almost all commenters supported this interpretation. Two commenters argued that the DOJ requirement is too limiting and would not exempt some buildings that should be exempted because of soil conditions, terrain, and other unusual site conditions. These commenters suggested consistency with HUD's Fair Housing Accessibility Guidelines (56 FR 9472 (1991)), which generally would allow exceptions from accessibility requirements, or allow compliance with less stringent requirements, on sites with slopes exceeding 10%...."

17. APPENDIX A TO PART 35—GUIDANCE TO REVISIONS TO ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY IN STATE AND LOCAL GOVERNMENT SERVICES

28 CFR Pt. 35, App. A

"...Finally, individuals with disabilities who have the legal right under the Fair Housing Act (FHA) to use certain animals in their homes as a reasonable accommodation to their disabilities have assumed that their animals also qualify under the ADA. This is not necessarily the case, as discussed below...."

18. § 12132. Discrimination

42 USCA § 12132

"...Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity...."

19. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

"...It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by section 3603, 3604, 3605, or 3606 of this title...."

20. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation

agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

Follow-up question

4. What are the current maximum civil penalty amounts available under 42 U.S.C. § 3614(d)(1)(C), including inflation adjustments, for first violations, subsequent violations, and pattern-or-practice discrimination?

The current maximum civil penalty amounts under [42 U.S.C.A. § 3614](#) (d)(1)(C), including inflation adjustments, are as follows: for a first violation, the maximum penalty is \$75,000 for violations occurring on or after April 28, 2014; for any subsequent violation, the maximum penalty is \$150,000 for violations occurring on or after April 28, 2014 ([28 C.F.R. § 85.3](#)) [1]. These amounts reflect adjustments for inflation as required by the Federal Civil Penalties Inflation Adjustment Act of 1990 ([28 C.F.R. § 85.3](#)) [1].

Maximum Civil Penalty Amounts Under [42 U.S.C.A. § 3614](#) (d)(1)(C)

Under [42 U.S.C.A. § 3614](#) (d)(1)(C), courts may assess civil penalties to vindicate the public interest in cases involving discriminatory housing practices. The statute originally set the maximum penalty for a first violation at \$50,000 and for subsequent violations at \$100,000 ([42 U.S.C.A. § 3614](#)) [2]. However, these amounts have been adjusted for inflation. According to [28 C.F.R. § 85.3](#) , the adjusted penalty for a first violation is \$75,000 for violations occurring on or after April 28, 2014, and the adjusted penalty for subsequent violations is \$150,000 for violations occurring on or after April 28, 2014 ([28 C.F.R. § 85.3](#)) [1].

Application of Penalties for Continuing Violations

The statute does not explicitly address how penalties are applied to continuing violations on a daily basis. However, other statutes and regulations provide guidance on the treatment of continuing violations. For example, under [33 U.S.C.A. § 1319](#) (g)(2)(A), civil penalties for certain environmental violations are assessed per day for each day the violation continues, up to a maximum amount ([33 U.S.C.A. § 1319](#)) [3]. Similarly, [15 U.S.C.A. § 1264](#) (c)(1) provides that continuing violations of hazardous substance regulations may constitute separate offenses for each day of violation, subject to a maximum penalty for related series of violations ([15 U.S.C.A. § 1264](#)) [4]. These examples suggest that courts may consider each day of a continuing violation as a separate offense, but the total penalty may be capped at the statutory maximum for related violations.

While [42 U.S.C.A. § 3614](#) (d)(1)(C) does not explicitly provide for daily penalties, courts may consider the nature and circumstances of the violation when assessing penalties. For instance, in *Slay v. Texas Commission on Environmental Quality*, the court emphasized the importance of considering factors such as compliance history, culpability, and efforts to mitigate violations when calculating penalties ([Slay v. Texas Com'n on Environmental Quality, 351 S.W.3d 532 \(2011\)](#)) [5]. This approach may be relevant in determining penalties for ongoing discriminatory housing practices under [42 U.S.C.A. § 3614](#) (d)(1)(C).

In summary, the maximum civil penalty amounts under [42 U.S.C.A. § 3614](#) (d)(1)(C) are \$75,000 for a first violation and \$150,000 for subsequent violations, as adjusted for inflation. While the statute does not explicitly address daily penalties for continuing violations, courts may apply penalties on a per-day basis for ongoing violations, subject to the statutory maximum, and may consider various factors in determining the final penalty amount.

Commentary about this question

APPENDIX C-1. Code of Federal Regulations—Civil Monetary Penalties Inflation Adjustment Regulations

The False Claims Act: Fraud Against the Government • The False Claims Act: Fraud Against the Government Appendix C-1

This compilation of inflation-adjusted civil monetary penalties under federal regulations details the maximum penalty amounts available for violations under various statutes, including 42 U.S.C. § 3614(d)(1)(C) of the Fair Housing Act. It provides updated penalty figures for first violations and subsequent violations, reflecting adjustments in accordance with the Federal Civil Penalties Inflation Adjustment Act and the Bipartisan Budget Act. Specifically, the penalties for first violations under the Fair Housing Act are set at \$123,965, and for subsequent violations at \$247,929, as of the most recent adjustments effective January 30, 2023. The resource categorizes these penalties as maximum amounts and implicitly reflects their applicability in federal litigation contexts, including within Texas jurisdiction, since these penalties are federally mandated. It also notes that some civil violations subject to continuing daily violations may have penalties assessed per day under other statutory schemes, relevant to understanding the enforcement of continuing violations. This provides a statutory framework for understanding the penalty amounts and their application to repeated or ongoing violations under the Fair Housing Act.

§ 26:9. § 3614(a): “Pattern or practice” and “General public importance” cases—Relief in § 3614(a) cases—Civil penalties

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation § 26:9

Civil penalties under 42 U.S.C. § 3614(d)(1)(C), established by the 1988 Fair Housing Amendments Act and adjusted for inflation per the Federal Civil Monetary Penalties Inflation Act of 1990, currently allow courts to impose up to \$127,983 for a first violation and up to \$255,964 for subsequent violations. These penalties are discretionary, aimed at vindicating the public interest, and not automatic. Factors influencing penalty amounts include the violation's nature, culpability, prior violations, defendant's financial status, and deterrence goals. The statute's term “violation” is interpreted through HUD regulations, extending to adjudications from various government proceedings. Penalties for pattern-or-practice discrimination cases reflect these amounts and principles. Unlike HUD administrative proceedings assessing civil penalties without jury trials, § 3614 actions may involve jury trials. The assessment approach draws on punitive damage jurisprudence, emphasizing discretion within statutory limits. There is limited case law on continuous daily violations but definitions may align with HUD's broader violation interpretations.

APPENDIX 6C. Sample Memorandum In Opposition to Defendant's Post-Trial Motion for Judgment as Matter of Law on Punitive Damages

Housing Discrimination Practice Manual • 4 Housing Discrim. Pr. Man. Appendix 6C

The legal text details the civil penalties authorized under 42 U.S.C. § 3614(d)(1)(C) for violations of the Fair Housing Act, including the maximum amounts of \$50,000 for first violations and \$100,000 for subsequent violations, with adjustments for inflation pursuant to 28 U.S.C. § 2461. The adjusted penalties currently stand at \$55,000 and \$110,000, respectively. Civil penalties are assessed per defendant and can be applied repeatedly, reflecting ongoing discriminatory conduct. The memorandum discusses the application of these penalties alongside punitive damages in cases of housing discrimination, including sexual harassment, emphasizing that penalties accumulate per violation or per victim when the discrimination is continuous. The document also highlights federal interpretations relevant in Texas jurisdiction, noting the importance of inflation adjustments and the principle that multiple violations across

different victims or acts can result in multiple penalties, particularly where persistent discrimination exists over time. This aligns with enforcement practices under federal law in Texas.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 85.3 Adjustments to penalties for violations occurring on or before November 2, 2015.

28 CFR § 85.3

"...For all violations occurring on or before November 2, 2015, and for assessments made before August 1, 2016, for violations occurring after November 2, 2015, the civil monetary penalties provided by law within the jurisdiction of the respective components of the Department, as set forth in paragraphs (a) through (d) of this section, are adjusted as provided in this section in accordance with the inflation adjustment procedures prescribed in section 5 of the Federal Civil Penalties Inflation Adjustment Act of 1990, Public Law 101-410, as in effect prior to November 2, 2015. The adjusted penalties set forth in paragraphs (a), (c), and (d) of this section are effective for violations occurring on or after September 29, 1999, and on or before November 2, 2015, and for assessments made before August 1, 2016, for violations occurring after November 2, 2015. For civil penalties assessed after August 1, 2016, whose associated violations occurred after November 2, 2015, see the adjusted penalty amounts in section 85.5. ..."

"...(b) Civil Rights Division. (3) 42 U.S.C. 3614(d)(1)(C), Fair Housing Act of 1968, as amended (Pattern or Practice Violation): (i) The civil monetary penalty amount for a first order, initially set at \$50,000, is adjusted to \$55,000 for a violation occurring on or after September 29, 1999, and before April 28, 2014, and is adjusted to \$75,000 for a violation occurring on or after April 28, 2014. (ii) The civil monetary penalty amount for a subsequent order, initially set at \$100,000, is adjusted to \$110,000 for a violation occurring on or after September 29, 1999, and before April 28, 2014, and is adjusted to \$150,000 for a violation occurring on or after April 28, 2014...."

2. § 3614. Enforcement by Attorney General

42 USCA § 3614

"...(a) Pattern or practice cases Whenever the Attorney General has reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of resistance to the full enjoyment of any of the rights granted by this subchapter, or that any group of persons has been denied any of the rights granted by this subchapter and such denial raises an issue of general public importance, the Attorney General may commence a civil action in any appropriate United States district court. (b) On referral of discriminatory housing practice or conciliation agreement for enforcement (1)(A) The Attorney General may commence a civil action in any appropriate United States district court for appropriate relief with respect to a discriminatory housing practice referred to the Attorney General by the Secretary under section 3610(g) of this title. (B) A civil action under this paragraph may be commenced not later than..."

3. § 1319. Enforcement

33 USCA § 1319

"...(g) Administrative penalties (2) Classes of penalties (A) Class I The amount of a class I civil penalty under paragraph (1) may not exceed \$10,000 per violation, except that the maximum amount of any class I civil penalty under this subparagraph shall not exceed \$25,000. Before issuing an order assessing a civil penalty under this subparagraph, the Administrator or the Secretary, as the case may be, shall give to the person to be assessed such penalty written notice of the Administrator's or Secretary's proposal to issue such order and the opportunity to request, within 30 days of the date the notice is received by such person, a hearing on the proposed order. Such hearing shall not be subject to section 554 or 556 of Title 5, but shall provide a reasonable opportunity to be heard and to present evidence. The amount of a class II civil penalty under paragraph (1) may not exceed \$10,000 per day for each day during which the violation continues; except that the maximum amount of any class II civil penalty under this subparagraph shall not exceed \$125,000. Except as otherwise provided in this subsection, a class II civil penalty shall be assessed and collected in the same manner, and subject to the same provisions, as in the case of civil penalties assessed and collected after notice and opportunity for a hearing on the record in accordance with section 554 of Title 5. The Administrator and the Secretary may issue rules for discovery procedures for hearings under this subparagraph...."

4. § 1264. Penalties; exceptions

15 USCA § 1264

"...(a) Criminal penalties Any person who violates any of the provisions of section 1263 of this title shall be guilty of a misdemeanor and shall on conviction thereof be subject to a fine of not more than \$500 or to imprisonment for not more than ninety days, or both; but for offenses committed with intent to defraud or mislead, or for second and subsequent offenses, the penalty shall be imprisonment for not more than 5 years, a fine determined under section 3571 of Title 18, or both. (b) Exceptions No person shall be subject to the penalties of subsection (a) of this section, (1) for having violated section 1263(c) of this title, if the receipt, delivery, or proffered delivery of the hazardous substance was made in good faith, unless he refuses to furnish on request of an officer or employee duly designated by the Commission, the name and address of..."

"...(c) Civil penalties (C) The schedule of maximum authorized penalties shall be prescribed by increasing each of the amounts referred to in paragraph (1) by the cost-of-living adjustment for the preceding five years. Any increase determined under the preceding sentence shall be rounded to-- (i) in the case of penalties greater than \$1,000 but less than or equal to \$10,000, the nearest multiple of \$1,000; i) in the case of penalties greater than \$10,000 but less than or equal to \$100,000, the nearest multiple of \$5,000; ii) in the case of penalties greater than \$100,000 but less than or equal to \$200,000, the nearest multiple of \$10,000; and v) in the case of penalties greater than \$200,000, the nearest multiple of \$25,000...."

5. Slay v. Texas Com'n on Environmental Quality

Court of Appeals of Texas, Austin. • August 31, 2011 • 351 S.W.3d 532 • 2011 WL 3890402

"...Penalties .Standards and criteria. Once the number of violation events is determined, that number is multiplied by the corresponding violation base penalty to yield a "violation base penalty." From there, amounts may be added or subtracted from the subtotal based on several separate factors: (1) upward adjustment for negative

"compliance history"; (2) upward adjustment if the respondent is classified as a "repeat violator"; (3) upward adjustment for "culpability," i.e., whether the respondent could have anticipated and avoided the violation; (4) downward adjustment if the respondent made good-faith efforts to return the site to compliance; (5) upward adjustment if the respondent obtained greater than \$15,000 in economic gain from its violation; and (6) downward adjustment if the respondent's compliance history "performance" is "high" and upward if it is "poor" (and neither if it is "average"). Where the conditions for making any such adjustments are met, the adjustment amount is determined by multiplying a specified percentage times the amount of the violation base penalty. After making any such adjustments, the penalty is then subject to a further percentage adjustment based on "other factors that justice may require," if any, to yield the final penalty amount. The final figure that results is then compared to the statutory range of penalty amounts for violating the regulation and adjusted as necessary to ensure that the penalty amount does not exceed the per-day maximum penalty or fall below any statutorily specified minimum amount...."

"...Application. The ALJ, in stark contrast, recommended that a total penalty of only \$1,500 be imposed against the respondents, jointly and severally. The ALJ found that the penalty calculation worksheets underlying the executive director's recommended penalties "contain(ed) errors, unproven assumptions, and unproven bases." Based on his own application of the Penalty Policy, the ALJ concluded that each of the five regulatory violations was properly considered "only on a Facility-wide basis," thereby rejecting the executive director's use of multipliers where the same regulatory violation was found to have occurred at more than one location within the site. The ALJ similarly concluded that each regulatory violation should properly be considered a single violation event, not ten events of continuing monthly violations, as the executive director had proposed with respect to three of the violations. The ALJ further rejected the executive director's proposed upward adjustments to the total violation base penalties. Instead, the ALJ concluded that, "(b)ased on the facts and circumstances peculiar to this case," the only violations that should be penalized were respondents' infringement of TCEQ rule 335.6(c), in the amount of \$1,000, and TCEQ rule 335.2 and EPA rule 270.1, in the amount of \$500, yielding the \$1,500 total penalty...."

6. **Dillon v. AFBIC Development Corp.**

United States Court of Appeals, Fifth Circuit. • June 21, 1979 • 597 F.2d 556

"...V .DAMAGES, COSTS, AND ATTORNEY FEES. On remand, the district court must determine the amount the plaintiffs shall recover in actual damages, and whether they may recover punitive damages, costs, and attorney fees. The plaintiffs have prevailed on their individual claim under both s 1982 and the Fair Housing Act. As we pointed out earlier, s 1982 and the Fair Housing Act are independent statutory schemes. The district court, therefore, should allow the plaintiffs to benefit from the more liberal recovery provisions applicable to s 1982 violations. There is no statutory limit placed upon the amount of punitive damages recoverable for a s 1982 violation. Compare 42 U.S.C. s 3612(c) (\$1,000 punitive damages limit under Fair Housing Act). See *Fountila v. Carter*, 9 Cir. 1978, 571 F.2d 487, 494. Section 1982 also has a more generous provision for the recovery of attorney fees. The Fair Housing Act allows the recovery of attorney fees to only prevailing parties financially unable to assume them. 42 U.S.C. s 3612(c). In contrast, the attorney fees provision applicable to violations of s 1982, 42 U.S.C. s 1988, has no such limitation. *Bunn v. Central Realty*, 5 Cir. 1979, 592 F.2d 891; *Hughes v. Repko*, 3 Cir. 1978, 578 F.2d 483, 488. The plaintiffs may seek to recover attorney fees under s 1988 even though this action was filed before Congress passed that statute. *Hutto v. Finney*, 1978, 437 U.S. 678, 694 n.23, 98 S.Ct. 2565, 2576, 57 L.Ed.2d 522; *Morrow v. Dillard*, 5 Cir. 1978, 580 F.2d 1284, 1299-1300. Under s 1988, "a prevailing party should ordinarily recover an attorney's fee unless special circumstances would render such an award unjust". *Morrow*, 580 F.2d at 1300...."

7. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • March 14, 1973 • 474 F.2d 1164

"...Finding of one violation before effective date of Fair Housing Act cannot justify a finding of a pre-Act pattern or practice without a finding of any other factors to support the decision. Civil Rights Act of 1968, S 813, 42 U.S.C.A. S 3613...."

8. U.S. v. Pelzer Realty Co., Inc.

United States Court of Appeals, Fifth Circuit. • September 05, 1973 • 484 F.2d 438

"...IV .Enforcement by the Attorney General. In a case which concerned violation of a different subsection of S 3604, a Maryland district court correctly cited United States v. Mayton, 335 F.2d 153, 158 (5 Cir., 1964) for the proposition that, "The words pattern or practice were not intended to be words of art." United States v. Mintzes, supra, 304 F. Supp. at 1314. The court went on to note that the Fair Housing Act provided alternative remedies for its violation, and in considering the appropriateness of a remedy under S 3613, a court should look to the feasibility of alternative remedies. The court said that "in such a case as this conciliation has little or nothing to work on and a private civil action would be prohibitively expensive for the parties to whom the representations were made, who do not stand to gain or lose any money or property by the outcome of such a suit." Id...."

9. § 3.91 Adjusted civil monetary penalties.

7 CFR § 3.91

"...(b) Penalties- (i) Civil penalty for a violation of section 536 of Title V of the Housing Act of 1949, codified in 42 U.S.C. 1490p(e)(2), has a maximum of \$251,321 in the case of an individual, and a maximum of \$2,513,215 in the case of an applicant other than an individual.lxii) Civil penalty for a violation, codified at 7 U.S.C. 86(c), has a maximum of \$350,870.v) Civil penalty for a vendor convicted of trafficking in food instruments, codified at 42 U.S.C. 1786(o)(1)(A) and 42 U.S.C. 1786(o)(4)(B), has a maximum of \$19,247 for each violation, except that the maximum penalty for violations occurring during a single investigation is \$76,992.vi) Civil penalty for a vendor convicted of selling firearms, ammunition, explosive, or controlled substances in exchange for food instruments, codified at 42 U.S.C. 1786(o)(1)(B) and 42 U.S.C. 1786(o)(4)(B), has a maximum of \$18,774 for each violation, except that the maximum penalty for violations occurring during a single investigation is \$76,992...."

10. Texas v. Google LLC

United States District Court, E.D. Texas, Sherman Division. • June 18, 2025 • 787 F.Supp.3d 357 • 2025 WL 1713256

"...D. Current Seventh Amendment Framework: Tull and Jarkesy. Turning to the requested remedy-civil penalties-the Jarkesy Court once more examined the same markers discussed in Tull. The civil penalties at issue in Jarkesy, like those in Tull, were designed to deter and punish because (1) they could reach "up to \$725,000 per violation," even without a showing of investor harm; (2) the tiered system for those penalties depended "on the culpability of the defendant and the need for deterrence, not the size of the harm that must be remedied"; and (3) the SEC need not "return any money" collected through these penalties "to victims." Id. at 118, 124, 144 S.Ct. 2117. Overall, the Court concluded that "the civil penalties in this case are designed to punish and deter, not to compensate" and

were thus "a type of remedy at common law that could only be enforced in courts of law." Id. at 125, 144 S.Ct. 2117. (quotation omitted). Based on these conclusions, the Court held that the Jarkesy defendants were entitled to a jury trial. Id. at 140, 144 S.Ct. 2117. * * *..."

11. Environment Texas Citizen Lobby, Inc. v. ExxonMobil Corporation

United States District Court, S.D. Texas, Houston Division. • March 02, 2021 • 524 F.Supp.3d 547 • 2021 WL 1529967

"...g. Balancing the Factors. 74. The maximum penalty for each day of violation is \$32,500 for violations occurring before January 13, 2014, and \$37,500 for violations occurring on January 13, 2009, and thereafter. 42 U.S.C. S 7413(e)(2); 40 C.F.R. S 19.4. Plaintiffs contend the total maximum penalty, after deducting for overlapping violations, is \$343,105,000. However, Plaintiffs previously sought \$40,815,618 in penalties on the first remand and now seek \$19,951,278. Exxon contends it should be assessed a penalty in an amount no more than \$1,365,000. ..."

12. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • September 04, 1975 • 518 F.2d 884

"...This Court also recognized that the Government sought injunctive relief and claimed a pattern and practice of resistance to the Fair Housing Act, thus raising an issue of general public importance. Northside I, 474 F.2d at 1165. And, except for the infection of the unconstitutional "penalty" on the realtor for obdurate opposition to the Act, we stated that the finding was amply supported, and we remanded for a further explanation of the reasons for a finding of discrimination and whether they were tainted by this impermissible burden...."

13. U.S. v. Mitchell

United States Court of Appeals, Fifth Circuit. • September 21, 1978 • 580 F.2d 789 • 1978 WL 519115

"...Statistics, although not dispositive, have critical if not decisive significance in determining violation of Fair Housing Act. Civil Rights Act of 1968, SS 801 et seq., 804(a), 42 U.S.C.A. SS 3601 et seq., 3604(a)...."

14. Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...Unlawful practices under the Fair Housing Act (FHA) include zoning laws and other housing restrictions that function unfairly to exclude minorities from certain neighborhoods without any sufficient justification. Civil Rights Act of 1968, SS 804(a), 805(a), 42 U.S.C.A. SS 3604(a), 3605(a)...."

15. Co-Efficient Foundation v. Woods

United States Court of Appeals Fifth Circuit. • December 17, 1948 • 171 F.2d 691

"...Where no order had been entered directing a refund of rent overcharges to tenants, and action by Housing Expediter for double or treble damages was brought more than 30 days after date of any alleged violation arising from collection of excess rent, action was not prematurely brought because allegedly filed one day before expiration of 30 days allowed under rent regulation applying where decrease in rent has been ordered, plus the 30 days after violation allowed by statute to tenant in which to bring suit. Emergency Price Control Act of 1942, S 205(a, e), as amended, 50 U.S.C.A.Appendix, S 925(a, e)...."

Additional Research on This Topic

16. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination6)(A) Nothing in paragraph (5) shall be construed to affect the authority and responsibility of the Secretary or a State or local public agency certified pursuant to section 3610(f)(3) of this title to receive and process complaints or otherwise engage in enforcement activities under this subchapter...."

17. § 3613. Enforcement by private persons

42 USCA § 3613

"...(c) Relief which may be granted (1) In a civil action under subsection (a), if the court finds that a discriminatory housing practice has occurred or is about to occur, the court may award to the plaintiff actual and punitive damages, and subject to subsection (d), may grant as relief, as the court deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order (including an order enjoining the defendant from engaging in such practice or ordering such affirmative action as may be appropriate)...."

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation

agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

18. § 19.4 Statutory civil monetary penalties, as adjusted for inflation, and tables.

40 CFR § 19.4

"...Table 1 of this section sets out the statutory civil monetary penalty provisions of statutes administered by the EPA, with the third column setting out the latest operative statutory civil monetary penalty levels for violations that occur or occurred after November 2, 2015, where penalties are assessed on or after January 8, 2025. The fourth column displays the operative statutory civil monetary penalty levels where penalties were assessed on or after December 27, 2023, but before January 8, 2025. Table 2 of this section sets out the statutory civil monetary penalty provision of statutes administered by the EPA, with the operative statutory civil monetary penalty levels, as adjusted for inflation, for violations that occurred on or before November 2, 2015, and for violations that occurred after November 2, 2015, where penalties were assessed before August 1, 2016...."

Follow-up question

5. How has the Fifth Circuit applied the Fair Housing Act to cases involving ongoing discriminatory conditions or repeated refusals to accommodate disabled tenants?

It looks like there's a difference between your selected jurisdiction and your query. The response below is based on the following jurisdiction: 5th Circuit Court of Appeals

The Fifth Circuit has addressed the application of the Fair Housing Act (FHA) to cases involving ongoing discriminatory conditions and repeated refusals to accommodate disabled tenants, particularly in the context of the continuing violation doctrine and the assessment of separate violations for ongoing non-compliance.

Application Of The Fair Housing Act To Ongoing Discriminatory Conditions And Refusals To Accommodate

The Fifth Circuit has recognized that a violation of the FHA occurs when a disabled resident is first denied a reasonable accommodation, regardless of whether remedies are later granted in subsequent proceedings. This denial can be either actual or constructive, as an indeterminate delay in providing the accommodation has the same effect as an outright denial. In [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), the court held that the district court was within its discretion to find that a reasonable accommodation was denied due to unjustified delays by Parish officials ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [1].

Under the FHA, discrimination includes the refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford a disabled person equal opportunity to use and enjoy a dwelling. This provision is codified in [42 U.S.C.A. § 3604](#) (f)(3) (B), which explicitly defines the failure to reasonably accommodate as a form of discrimination ([42 U.S.C.A. § 3604](#)) [2].

Continuing Violation Doctrine And Ongoing Non-Compliance

The continuing violation doctrine has been applied by the Fifth Circuit in various contexts, including claims under the FHA. The doctrine allows courts to consider a series of related discriminatory acts as a single violation, provided they are part of a continuing pattern of conduct. In [Huckabay v. Moore](#), the court explained that the continuing violation doctrine applies to excuse the exhaustion requirement only for the course of conduct that constitutes the violation. The court emphasized that determining whether conduct constitutes a continuing violation depends on whether the acts are sufficiently related to form a single, ongoing pattern of discrimination ([Huckabay v. Moore](#), 142 F.3d 233 (1998)) [3]. However, it is important to note that [Huckabay v. Moore](#) was abrogated by [Heath v. Board of Supervisors for Southern University and Agricultural and Mechanical College](#), which clarified that the distinction between continuing violations and discrete acts is a generic feature of federal employment law. The court in [Heath](#) emphasized that ongoing harassment claims may qualify as continuing violations, while discrete acts do not ([Heath v. Board of Supervisors for Southern University and Agricultural and Mechanical College](#), 850 F.3d 731 (2017)) [4].

In the context of the FHA, the Fifth Circuit has also held that federal courts are empowered to eliminate the present effects of past discrimination. In [U.S. v. West Peachtree Tenth Corp.](#), the court found that post-Act discriminatory practices, such as maintaining a segregated apartment policy and failing to inform certain applicants of deposit requirements, established a pattern or practice of discrimination after the effective date of the FHA ([U.S. v. West Peachtree Tenth Corp.](#), 437 F.2d 221 (1971)) [5]. This case demonstrates the court's willingness to address ongoing discriminatory conditions under the FHA.

Limitations And Negative Treatment Of Precedent

It is important to note that the continuing violation doctrine does not automatically apply to all claims of ongoing discrimination. For example, in [Pegram v. Honeywell, Inc.](#), the Fifth Circuit rejected the application of the continuing violations doctrine to claims under Section 1981 and state law, finding that the alleged discriminatory acts did not constitute a pattern of discriminatory behavior ([Pegram v. Honeywell, Inc.](#), 361 F.3d 272 (2004)) [6]. However, this case was abrogated by *Hamilton v. Dallas County* in 2023, which may impact its precedential value.

Additionally, the Fifth Circuit has distinguished between ongoing violations and discrete acts. In [Ryals v. American Airlines, Inc.](#), the court declined to apply the continuing violation doctrine to a hostile work environment claim under Title VII, emphasizing the need for evidence to establish a genuine issue of material fact showing a continuing violation ([Ryals v. American Airlines, Inc.](#), 553 Fed.Appx. 402 (2014)) [7]. While this case involved Title VII rather than the FHA, the court's analysis of the continuing violation doctrine may be relevant to similar claims under the FHA.

In summary, the Fifth Circuit has applied the FHA to cases involving ongoing discriminatory conditions and repeated refusals to accommodate disabled tenants, recognizing that such conduct can constitute a continuing violation under certain circumstances. The court has emphasized the importance of assessing whether the conduct forms a single, ongoing pattern of discrimination, as opposed to discrete acts. However, the application of the continuing violation doctrine is not automatic and requires a careful analysis of the facts and legal standards.

Commentary about this question

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

This text discusses application and interpretation of the Fair Housing Act (FHA), including reasonable accommodation requirements, discrimination on the basis of disability, and related federal statutes. It references standards for disability under the FHA and related laws, reasonable accommodation obligations, and examples of FHA claims involving refusal to accommodate disabled tenants. The analysis covers how courts interpret discrimination claims, including FHA provisions banning unlawful discriminatory housing practices, and the necessity of individually assessing accommodations. It addresses distinct legal theories under the FHA: disparate treatment, disparate impact, and failure to reasonably accommodate. Several cases illustrate enforcement of FHA protections, including treatment of ongoing discriminatory practices and challenges to policies affecting disabled tenants' housing rights. Although the continuing violation doctrine and separate violations for ongoing noncompliance are not explicitly detailed, this source provides foundational context on FHA disability claims relevant to ongoing and repeated discriminatory conduct within the Fifth Circuit's jurisdiction.

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

The material addresses legal principles applicable under the Fair Housing Act (FHA), focusing on ongoing discriminatory practices and owners' continuing obligations toward disabled tenants, particularly through sections 3604(f)(1) and (2). It discusses the applicability of the continuing violation doctrine in FHA claims, highlighting that repeated or ongoing failures to make housing accessible or to accommodate disabled individuals constitute separate violations. The text distinguishes liability for owners leasing noncompliant properties from design and construction violations under 3604(f)(3), emphasizing owners' duties to correct accessibility defects and prevent discriminatory terms or conditions. It also recognizes organizational standing in FHA cases, noting that claims need not identify individual victims but may be based on discriminatory policies or practices affecting disabled persons. Although the examples rely heavily on non-5th Circuit decisions, they reflect relevant legal doctrines and interpretive approaches concerning continuing violations and nondiscriminatory obligations owed by housing providers under the FHA, consistent with tort principles and liberal statutory construction applicable in the Fifth Circuit.

APPENDIX D. Attorney's Forms

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation Appendix D

This legal material discusses claims under the Fair Housing Act (FHA) relating to ongoing discriminatory conduct against disabled tenants, including refusal to grant reasonable accommodations and retaliatory actions culminating in eviction attempts. It illustrates the application of the FHA's provisions prohibiting discrimination in rental terms, denial of housing due to disability, and refusal to accommodate disabilities, with attention to the presumption of irreparable harm arising from discriminatory eviction attempts. The summary further highlights patterns of harassment and repeated discriminatory acts exacerbating the tenant's injuries, supporting claims that ongoing violations may constitute multiple separate breaches under the FHA. It also includes analysis of tenants' likelihood of success on the merits and the balancing of hardships favoring injunctive relief to prevent eviction, reflecting principles relevant to continuing violation doctrine and the assessment of separate violations for ongoing non-compliance within housing discrimination litigation in federal courts, including contexts applicable in the Fifth Circuit.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. Groome Resources Ltd., L.L.C. v. Parish of Jefferson

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...III. RIPENESS. First, as to the "fitness of the issues for judicial decision," we agree with the Court of Appeals for the Fourth Circuit that "(u)nder the Fair Housing Act . a violation occurs when the disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings." Bryant Woods Inn, Inc. v. Howard County, Md. 124 F.3d 597, 602 (4th Cir.1997). This denial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. In the instant case, the district court was well within its discretion to decide that a reasonable accommodation was denied by the unjustified delay of the Parish officials...."

"...A denial of a reasonable accommodation in violation of the Fair Housing Act (FHA) can be actual or constructive, as an indeterminate delay has the same effect as an outright denial. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

2. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination3) For purposes of this subsection, discrimination includes-- (C) in connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that-- (ii) all the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and..."

3. Huckabay v. Moore

United States Court of Appeals, Fifth Circuit. • May 22, 1998 • 142 F.3d 233 • 1998 WL 260979

"...B. That Huckabay was subjected to this continuing violation does not, however, necessarily make timely all his allegations of discriminatory conduct. Where it is applicable, the continuing violation doctrine applies to excuse the 300-day exhaustion requirement only as to the course of conduct that constitutes that violation. We therefore must consider whether all the conduct alleged by Huckabay--the hostile environment, the demotion, and the failure to promote--may be considered part of the same continuing course of conduct. This, in turn, will depend on the basic test for what conduct will constitute a continuing violation, as articulated in Berry and other cases...."

4. **Heath v. Board of Supervisors for Southern University and Agricultural and Mechanical College**

United States Court of Appeals, Fifth Circuit. • March 08, 2017 • 850 F.3d 731 • 2017 WL 923408

"...B. This recognition that Title VII continuing violation law applies with equal force to section 1983 means the same error infected the limitations analysis for Heath's hostile workplace claims brought under both laws. Indeed, Morgan's "distinction between 'continuing violations' and 'discrete acts' is not an artifact of Title VII, but is rather a generic feature of federal employment law." O'Connor, 440 F.3d at 128. A number of circuits therefore have applied Morgan when determining whether a section 1983 claim alleges a continuing violation. See *id.*; Sharpe v. Cureton, 319 F.3d 259, 267-68 (6th Cir. 2003); Hildebrandt v. Ill. Dep't of Natural Res., 347 F.3d 1014, 1036 (7th Cir. 2003); Cherosky v. Henderson, 330 F.3d 1243, 1246 n.3 (9th Cir. 2003); see also Burkley v. Corr. Healthcare Mgmt. of Oklahoma, Inc., 141 Fed.Appx. 714, 716 (10th Cir. 2005) (assuming without deciding that Morgan applies); Reyes v. Weslaco Indep. Sch. Dist., 2007 WL 2538804, at *5 (S.D. Tex. Aug. 30, 2007) (applying Morgan to section 1983 hostile work environment claim); cf. Shomo v. City of New York, 579 F.3d 176, 182 (2d Cir. 2009) (finding that, under Morgan, the continuing violation doctrine "can apply when a prisoner challenges a series of acts that together comprise an Eighth Amendment claim of deliberate indifference to serious medical needs"). The line Morgan drew between discrete act claims and ongoing harassment claims means the latter, but not the former, may qualify as continuing violations whether brought under Title VII or section 1983. And in assessing whether the challenged conduct amounts to a continuing violation, Morgan's disclaiming of an "on notice" inquiry should also apply to section 1983 hostile work environment claims...."

5. **U.S. v. West Peachtree Tenth Corp.**

United States Court of Appeals, Fifth Circuit. • January 04, 1971 • 437 F.2d 221 • 1971 WL 301936

"...The post-Act discriminations against Pitts and Threadcraft, the admission to Pitts that the apartment's policy of maintaining a segregated apartment continued into 1969, the failure to advise several of the post-Act applicants of the deposit requirement, and the absence of persuasive indications that a cessation in an admitted pre-Act pattern or practice occurred establish a pattern or practice of racial discrimination in renting after the effective date of the Act. Order and decree..."

"...Evidence that operator of apartment unit had admitted to applicant for housing the existence of policy of discrimination and that same applicant was told after the effective date of the Fair Housing Act that his "status" remained unchanged, and that operator failed to advise black applicants of the security deposit prerequisite to consideration of their applications established "pattern or practice" of discrimination after the effective date of Fair Housing Act. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...The good faith and disposition of landlord to adhere to letter and spirit of Fair Housing Act does not preclude federal court from granting relief on basis of past violations of the Act. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...In action under the Fair Housing Act, federal courts are empowered to eliminate the present effects of past discrimination. Fair Housing Act of 1968, S 813, 42 U.S.C.A. S 3613; 42 U.S.C.A. S 1971(c)...."

6. **Pegram v. Honeywell, Inc.**

United States Court of Appeals, Fifth Circuit. • March 05, 2004 • 361 F.3d 272 • 2004 WL 315145

"...Continuing Violations Doctrine. Pegram attempts to avoid this apparent untimeliness by invoking the continuing violations doctrine. Specifically, Pegram contends that the district court erred in dismissing his section 1981 and state law claims because Honeywell's alleged discriminatory acts, relating to Pegram's race and/or disability, constituted a pattern of discriminatory behavior. We cannot agree...."

7. Ryals v. American Airlines, Inc.

United States Court of Appeals, Fifth Circuit. • January 27, 2014 • 553 Fed.Appx. 402 • 2014 WL 279756

"...I. Whether the district court erred in denying the application of the continuing violation doctrine, thus excluding acts that occurred more than 300 days before Appellant's initial complaint to the EEOC? .II. Whether the admissible evidence establishes a genuine issue of material fact from which a jury could conclude that Appellant suffered a violation of the law?. In her response, Ryals states that "(t)he acts are related and continuing because . she was systematically segregated from her white, male co-workers . endured daily threats, both direct and indirect, to her safety and well being(,) repeatedly has been assigned to do jobs alone . (,) was purposefully assigned tasks that could not be completed by one person in one shift(,) was repeatedly and unjustifiably singled out for blame(, and was) deprive(d) of the same learning experience(s) that her white, male (coworkers) enjoyed." Ryals further insists that her coworkers refused or avoided working with her, and that she was subjected to "virtually constant" mockery and ridicule. But Ryals does not cite a single piece of evidence to support these conclusory and largely legalistic claims. Nor does she provide any legal analysis of whether these claims, even taken as true, would be sufficient to show a continuing violation. Specifically, she does not explain how these contentions show that the events prior to May 31, 2006, are related to those occurring after this date...."

8. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • March 14, 1973 • 474 F.2d 1164

"...Finding of one violation before effective date of Fair Housing Act cannot justify a finding of a pre-Act pattern or practice without a finding of any other factors to support the decision. Civil Rights Act of 1968, S 813, 42 U.S.C.A. S 3613...."

"...(3) A finding of only one pre-Act violation does not support a finding of a pre-Act pattern or practice of violating the Fair Housing Act...."

"...(1) The two post-Act violations of the Fair Housing Act that the District Court found occurred were insufficient to raise an issue of general public importance justifying the granting of injunctive relief...."

9. § 100.50 Real estate practices prohibited.

24 CFR § 100.50

"...(c) The application of the Fair Housing Act with respect to persons with handicaps is discussed in subpart D of this part...."

"... (a) This subpart provides the Department's interpretation of conduct that is unlawful housing discrimination under section 804 and section 806 of the Fair Housing Act. In general the prohibited actions are set forth under sections of this subpart which are most applicable to the discriminatory conduct described. However, an action illustrated in one section can constitute a violation under sections in the subpart. For example, the conduct described in S 100.60(b)(3) and (4) would constitute a violation of S 100.65(a) as well as S 100.60(a). (b) It shall be unlawful to: (1) Refuse to sell or rent a dwelling after a bona fide offer has been made, or to refuse to negotiate for the sale or rental of a dwelling because of race, color, religion, sex, familial status, or national origin, or to discriminate in the sale or rental of a dwelling because of handicap. (2) Discriminate in the terms,..."

10. **Woods-Drake v. Lundy**

United States Court of Appeals, Fifth Circuit. • February 18, 1982 • 667 F.2d 1198

"...Landlord's conduct of threatening to evict tenants if they continued to have black guests was a violation of section 1982 and was prohibited by express terms of Fair Housing Act. Civil Rights Act of 1968, S 804(b), 42 U.S.C.A. S 3604(b); 42 U.S.C.A. S 1982...."

"...A. The Scope of 42 U.S.C. s 1982 and of the Fair Housing Act. Not only was defendant's conduct-threatening to evict plaintiffs if they continued to have black guests-a violation of Section 1982; such conduct is also prohibited by the express terms of the Fair Housing Act. 42 U.S.C. s 3604(b) reads, in relevant part, "(I)t shall be unlawful ... to discriminate against any person in the terms, conditions, or privileges of ... rental of a dwelling ... because of race ..." (emphasis added). The provisions of 42 U.S.C. s 3604 are to be given broad and liberal construction, in keeping with Congress' intent in passing the Fair Housing Act of replacing racially segregated housing with "truly integrated and balanced living patterns." *Traffanti v. Metropolitan Life Insurance Company*, 409 U.S. 205, 93 S.Ct. 364, 368, 34 L.Ed.2d 415 (1972) quoting statement of Senator Mondale, 114 Cong.Rec. 2706. It is evident that when a landlord imposes on white tenants the condition that they may lease his apartment only if they agree not to receive blacks as guests, the landlord has discriminated against the tenants in the "terms, conditions and privileges of rental" on the grounds of "race." Therefore, the imposition upon white tenants of a rule that they may not receive black guests violates the Fair Housing Act. *United States v. L & H Land Corp., Inc.*, 407 F.Supp. 576, 579 (S.D.Fla.1976). Cf. *Traffanti v. Metropolitan Life Insurance Co.*, supra (whites have standing to sue under the Fair Housing Act for loss of interracial association due to apartment owner's racially discriminatory tenant selections)...."

"...Plaintiffs brought this action under the Fair Housing Act and federal civil rights statutes, alleging that their landlord evicted them because they had entertained black guests in their rented apartment. After trial, the district judge found that the defendant landlord had indeed conditioned plaintiffs' continued tenancy upon their agreement to no longer receive black guests. Nevertheless, the trial judge concluded that defendants' conduct did not violate federal law, and that plaintiffs had not sustained any damages. After careful review of the record in this case, we conclude that the district court's findings as to both liability and damages must be reversed...."

11. **Inclusive Communities Project, Incorporated v. Lincoln Property Company**

United States Court of Appeals, Fifth Circuit. • April 09, 2019 • 920 F.3d 890 • 2019 WL 1529692

"...With this appeal, we review the district court's dismissal with prejudice, pursuant to Rule 12(b)(6) of the Federal Rules of Civil Procedure, of Fair Housing Act claims - including claims of "disparate treatment" and "disparate impact" - asserted against the owners and management company of apartment complexes in the greater Dallas,

Texas area that decline to participate in the federal "Section 8" Housing Choice Voucher Program. For the reasons stated herein, we affirm...."

12. Osborne v. Belton

United States Court of Appeals, Fifth Circuit. • March 10, 2025 • 131 F.4th 262 • 2025 WL 750348

"...No fraud was involved in district court's admission of statements contained in requests for admission former tenants served on landlord, and thus, fraud was not grounds for granting landlord's later motion for relief from the court's grant of summary judgment to tenants, who were evicted from single-family home they leased, on their disability discrimination and retaliation claims under Fair Housing Act (FHA) and Louisiana Equal Housing Opportunity Act (LEHOA); district court properly deemed the statements admitted due to landlord's failure to respond to the requests for admission within 30 days. Civil Rights Act of 1968 S 801, 42 U.S.C.A. S 3601 et seq.; La. Rev. Stat. Ann. S 51:2601 et seq.; Fed. R. Civ. P. 36(a)(3), 60(b)(3)...."

13. APPENDIX A TO PART 35—GUIDANCE TO REVISIONS TO ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY IN STATE AND LOCAL GOVERNMENT SERVICES

28 CFR Pt. 35, App. A

"...Finally, individuals with disabilities who have the legal right under the Fair Housing Act (FHAct) to use certain animals in their homes as a reasonable accommodation to their disabilities have assumed that their animals also qualify under the ADA. This is not necessarily the case, as discussed below...."

14. Amendment V. Due Process clause [Text & Notes of Decisions subdivisions I to XIII]

USCA CONST Amend. V-Due Process

15. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

Follow-up question

6. Do federal courts hold that constructive eviction or termination of temporary housing for a disabled tenant can constitute discrimination or retaliation under the Fair Housing Act?

Federal courts have held that constructive eviction or termination of temporary housing for a disabled tenant can constitute discrimination or retaliation under the Fair Housing Act (FHA). Such actions may also be subject to the continuing violation doctrine under certain circumstances.

Constructive Eviction and Discrimination Under the Fair Housing Act

The Fair Housing Act (FHA), codified at [42 U.S.C.A. § 3604](#), prohibits discrimination in housing based on protected characteristics, including disability. Specifically, § 3604(f)(1) makes it unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap" of the renter or a person associated with the renter ([42 U.S.C.A. § 3604](#)) [1]. Discrimination under the FHA includes actions such as refusing to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford a disabled person equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [1].

Federal courts have recognized that constructive eviction can constitute discrimination under the FHA. In [Cox v. City of Dallas, Tex.](#), the Fifth Circuit acknowledged that § 3604(b) of the FHA may encompass claims of constructive eviction, citing the case [Woods-Drake v. Lundy](#), where a landlord's refusal to continue renting to a tenant because the tenant entertained Black guests was deemed a discriminatory condition of the rental agreement and a violation of § 3604(b) ([Cox v. City of Dallas, Tex., 430 F.3d 734 \(2005\)](#)) [2]. Similarly, in [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), the court held that a denial of reasonable accommodation under § 3604(f)(3)(B) can be actual or constructive, as an indeterminate delay in providing accommodations has the same effect as an outright denial ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson, 234 F.3d 192 \(2000\)](#)) [3].

In [Osborne v. Belton](#), former tenants successfully brought claims of disability discrimination and retaliation under the FHA after being evicted from their leased single-family home. The district court granted summary judgment in favor of the tenants, finding that the landlord's actions constituted discrimination and retaliation under the FHA ([Osborne v. Belton, 131 F.4th 262 \(2025\)](#)) [4].

Application of the Continuing Violation Doctrine

The continuing violation doctrine allows claims to be brought for discriminatory acts that occurred outside the statute of limitations if those acts are part of an ongoing pattern of discrimination. Under [42 U.S.C.A. § 3613](#) (a)(1)(A), an aggrieved person may file a civil action within two years of the occurrence or termination of an alleged discriminatory housing practice. The statute explicitly states that the computation of this two-year period excludes any time during which an administrative proceeding was pending with respect to the complaint ([42 U.S.C.A. § 3613](#)) [5].

While the continuing violation doctrine has been applied in certain contexts, its application depends on the specific facts of the case. For example, in [Ryals v. American Airlines, Inc.](#), the Fifth Circuit declined to apply the doctrine to a hostile work environment claim under Title VII, noting that the plaintiff failed to

provide evidence or legal analysis to show how earlier acts were related to later ones ([Ryals v. American Airlines, Inc.](#), 553 Fed.Appx. 402 (2014)) [6]. However, in the context of the FHA, courts have recognized that violations can occur over time, such as in [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#) , where the court held that an indeterminate delay in providing reasonable accommodation could constitute a continuing violation ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), 234 F.3d 192 (2000)) [3].

In summary, federal courts have held that constructive eviction or termination of temporary housing for a disabled tenant can constitute discrimination or retaliation under the FHA. Such actions may also be subject to the continuing violation doctrine if they are part of an ongoing pattern of discriminatory conduct, as recognized under 42 U.S.C.A. § 3613 (a)(1)(A) (42 U.S.C.A. § 3613) [5].

Commentary about this question

C. Bases for Terminating Tenancy

California Practice Guide--Landlord-Tenant • Cal. Prac. Guide Landlord-Tenant Ch. 7-C

This material discusses landlord-tenant issues involving termination of tenancy, constructive eviction, retaliatory eviction, and unlawful discrimination under housing statutes including the Fair Housing Act (FHA). It addresses wrongful termination defenses in unlawful detainer actions when employment-related eviction arises, including discrimination or retaliation protections under state and federal fair housing and employment laws. It explains constructive eviction as a nonstatutory common law tenant right allowing termination where landlord conduct materially breaches lease conditions by rendering premises uninhabitable, which could implicate disability and discrimination claims if linked to unfair treatment. The text further references protections against retaliatory and discriminatory evictions under the FHA, FEHA, ADA, and related laws, including burdens of proof and defenses. Though focusing on California law, fundamental concepts of discrimination, retaliation, and constructive eviction defenses discussed align with federal principles and may inform continuing violation doctrine considerations in eviction-based claims under the FHA, relevant to federal courts and by analogy the Fifth Circuit.

Cause of Action for Discrimination in Sale or Rental of Housing in Violation of Federal Fair Housing Act (42 U.S.C.A. §§ 3601 et seq.) on Basis of Religion or National Origin

Causes of Action Second Series • 62 Causes of Action 2d 471 (Originally published in 2014)

This text addresses discrimination claims under the federal Fair Housing Act (FHA), including the application of 42 U.S.C. § 3604(a) and (b) to post-acquisition conduct such as constructive eviction. It discusses federal courts' consideration of whether actions that render housing unavailable after rental or sale, akin to constructive eviction, may constitute FHA violations, including discrimination and retaliation. The material highlights cases where denial or termination of housing services, especially involving disabled tenants or vulnerable populations in temporary housing, has been challenged under the FHA. It also references the continuing violation doctrine implicitly through ongoing discriminatory practices and failure to provide relocation assistance. Various claims involving disabled tenants experiencing eviction from temporary housing and alleged retaliation are discussed, with courts analyzing the interplay between housing discrimination provisions and the requirement for adequate replacement housing and relocation benefits. These principles are situated within federal civil rights and FHA claims, relevant to the 5th Circuit judicial context on disability and retaliation under the FHA.

Cause of Action Under Fair Housing Act (42 U.S.C.A. §§ 3601 et seq.) for Harassment or Creation of Hostile Environment with Respect to Race or National Origin

Causes of Action Second Series • 93 Causes of Action 2d 559 (Originally published in 2020)

This source addresses claims under the federal Fair Housing Act (FHA) related to harassment and hostile housing environments, including issues of discriminatory intent, eviction, and termination of tenancy. It discusses the legal framework for establishing discrimination claims based on protected statuses, including disability in some contexts, and examines landlord-tenant interactions that may constitute constructive eviction under FHA claims. The document explains the necessity for persistent or severe conduct to support hostile environment claims and notes that constructive eviction requires proof of unfitness for occupancy compelling a tenant's departure. Moreover, it details the application of the continuing violation doctrine for FHA claims, clarifying that ongoing unlawful practices may toll the limitations period if the last alleged act occurs within the statutory window and early incidents did not put the plaintiff on notice of the violation. Although focused largely on race and national origin, the discussion of eviction, discrimination, and limitations under FHA is legally informative for disability-related housing discrimination questions in the Fifth Circuit jurisdiction.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discriminationf(1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of-- (C) any person associated with that buyer or renter...."

2. Cox v. City of Dallas, Tex.

United States Court of Appeals, Fifth Circuit. • November 09, 2005 • 430 F.3d 734 • 2005 WL 2996955

"...B. This is not to say that S 3604(b) applies only if the plaintiff was precluded from finding housing. For example, S 3604(b) may encompass the claim of a current owner or renter for attempted and unsuccessful discrimination relating to the initial sale or rental or for actual or constructive eviction. Indeed, in Woods Drake v. Lundy, this court held that the latter situation could sustain a S 3604(b) claim. In Woods-Drake, a landlord refused to continue renting to a tenant because the tenant entertained black guests. The tenant vacated and sued the landlord under S 3604(b) for imposing a "whites-only" condition on the terms of his lease, and the court held that he had a

claim. This was akin to constructive conviction and was a clear discriminatory condition of "sale or rental of the dwelling."..."

"...African-American city residents' claim that city had engaged in racial discrimination by failing to stop illegal dumping in their neighborhood, thus lowering resale value of their homes, was not cognizable under Fair Housing Act prohibition against "mak(ing) unavailable or deny(ing) dwelling to any person because of race"; residents' claim related to habitability, not availability, at least as long as effect on habitability fell short of constructive eviction. Fair Housing Act, S 804(a), 42 U.S.C.A. S 3604(a)...."

3. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A denial of a reasonable accommodation in violation of the Fair Housing Act (FHA) can be actual or constructive, as an indeterminate delay has the same effect as an outright denial. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...III. RIPENESS. First, as to the "fitness of the issues for judicial decision," we agree with the Court of Appeals for the Fourth Circuit that "(u)nder the Fair Housing Act . a violation occurs when the disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings." Bryant Woods Inn, Inc. v. Howard County, Md. 124 F.3d 597, 602 (4th Cir.1997). This denial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. In the instant case, the district court was well within its discretion to decide that a reasonable accommodation was denied by the unjustified delay of the Parish officials...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

4. **Osborne v. Belton**

United States Court of Appeals, Fifth Circuit. • March 10, 2025 • 131 F.4th 262 • 2025 WL 750348

"...Background: Former tenants, who were evicted from the single-family home they leased, brought action against their former landlord asserting disability discrimination and retaliation claims under the Fair Housing Act (FHA) and the Louisiana Equal Housing Opportunity Act (LEHOA). The United States District Court for the Western District of Louisiana, Terry A. Doughty, Chief Judge, 2022 WL 3093765, granted summary judgment to tenants and, 2023 WL 8352312, denied landlord's motion for relief from the judgment, and denied his subsequent motion to alter or amend the judgment. Landlord appealed. Holdings: The Court of Appeals held that: landlord's notice of appeal, which said he was appealing denial of his motion to alter or amend the judgment, would be read to

also encompass both underlying grant of summary judgment and intervening motion for relief from judgment; landlord's notice of appeal was untimely as to district court's grant of summary judgment to tenants; landlord's notice of appeal was timely as to district court's denial of his motion for relief from summary judgment; landlord's affidavit detailing his personal observations of one tenant was not newly discovered evidence that would support his motion for relief from judgment; no fraud, as basis for granting relief from judgment, was involved in district court's proper admission of statements contained in requests for admission served on landlord; letter from tenant's physician submitted in support of summary judgment was not a fraud that would warrant granting landlord relief from summary judgment; and landlord forfeited challenge to district court's personal jurisdiction over him on the grounds that he never received service of process and that his prior attorney's waiver of service of process was ineffective. Affirmed...."

5. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

6. Ryals v. American Airlines, Inc.

United States Court of Appeals, Fifth Circuit. • January 27, 2014 • 553 Fed.Appx. 402 • 2014 WL 279756

"...I. Whether the district court erred in denying the application of the continuing violation doctrine, thus excluding acts that occurred more than 300 days before Appellant's initial complaint to the EEOC? .II. Whether the admissible evidence establishes a genuine issue of material fact from which a jury could conclude that Appellant suffered a violation of the law?. In her response, Ryals states that "(t)he acts are related and continuing because . she was systematically segregated from her white, male co-workers . endured daily threats, both direct and indirect, to her safety and well being(,) repeatedly has been assigned to do jobs alone . (,) was purposefully assigned tasks that could not be completed by one person in one shift(,) was repeatedly and unjustifiably singled out for blame(, and was) deprive(d) of the same learning experience(s) that her white, male (coworkers) enjoyed." Ryals further insists that her coworkers refused or avoided working with her, and that she was subjected to "virtually constant" mockery and ridicule. But Ryals does not cite a single piece of evidence to support these conclusory and largely legalistic claims. Nor does she provide any legal analysis of whether these claims, even taken as true, would be sufficient to show a continuing violation. Specifically, she does not explain how these contentions show that the events prior to May 31, 2006, are related to those occurring after this date...."

7. Woods-Drake v. Lundy

United States Court of Appeals, Fifth Circuit. • February 18, 1982 • 667 F.2d 1198

"...Landlord's conduct of threatening to evict tenants if they continued to have black guests was a violation of section 1982 and was prohibited by express terms of Fair Housing Act. Civil Rights Act of 1968, S 804(b), 42 U.S.C.A. S 3604(b); 42 U.S.C.A. S 1982...."

"...In tenants' action under Fair Housing Act and section 1982, alleging that their landlord evicted them because they had entertained black guests in their rented apartment, plaintiffs were not required to show that racial animus was sole motivation for eviction, but only that race was a significant factor; accordingly, it was irrelevant that landlord may also have been angry at tenants for violating his parking rules, or that landlord disagreed with tenants' guests' political views. Civil Rights Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq.; 42 U.S.C.A. S 1982...."

"...B. Discriminatory Motivation. In sum, there is ample evidence to support the district court's finding that Mr. Lundy evicted plaintiffs because they had black guests. Discrimination in the provision of housing to whites because of their association with blacks violates both Section 1982 and the Fair Housing Act. Because Mr. Lundy's decision to terminate plaintiffs' lease was based at least in part on statutorily proscribed grounds, Mr. Lundy is liable under both Section 1982 and the Fair Housing Act. Thus, it is immaterial that the district court found that Mr. Lundy had other reasons, in addition to the race of plaintiffs' guests, for terminating plaintiffs' lease. We agree with our brethren in the Seventh Circuit:..."

"...SUMMARY. Reversal and remand of this case is so clearly compelled by the facts and the law that we engage in only an exiguous, rather than an exegetic, analysis. The district court found that, "defendant threatened to evict plaintiffs if they continued to receive black persons as guests in their house." It is well established that such conduct-discrimination against whites because of their association with blacks-is proscribed by 42 U.S.C. s 1982 and by the Fair Housing Act. Moreover, under both the Fair Housing Act and under Section 1982, plaintiffs need not show that racial animus was the sole motivation for eviction; only that race was a significant factor. Accordingly, it is irrelevant that defendant Lundy may also have been angry at plaintiffs for violating his parking rules, or that Lundy disagreed with plaintiffs' guests' political views, as the district court "inferred". So long as the race of plaintiffs' guests was a significant factor in defendant's decision to evict plaintiffs, the eviction was in violation of Section 1982 and of the Fair Housing Act. Given the district court's finding that defendant evicted plaintiffs because plaintiffs had black persons as guests, the conclusion of liability under Section 1982 and under the Fair Housing Act is inescapable. Finally, when plaintiffs were forced to leave their apartment, and to locate and move into other quarters, a finding that plaintiffs sustained no damages as the result of their unlawful eviction is clearly erroneous...."

8. Glover v. Housing Authority of City of Bessemer, Ala.

United States Court of Appeals, Fifth Circuit. • June 09, 1971 • 444 F.2d 158

"...Suit by tenant to enjoin public housing authority from evicting her, refusing to renew her lease, denying her opportunity for a fair hearing before eviction, and maintaining segregated housing units. The United States District Court for the Northern District of Alabama, at Birmingham, Frank H. McFadden, J., entered judgment in favor of defendant, and plaintiff appealed. The Court of Appeals, Wisdom, Circuit Judge, held that procedural protections to be accorded a tenant before eviction from a public housing project, as formulated by department of housing and urban development, should apply to all cases still under consideration; and fact that tenant had vacated apartment operated by public housing authority by the time the procedural protections had been formulated did not operate to deprive her of such protections, where her absence from apartment could not be characterized as a voluntary

relinquishment of her rights to status quo ante, in that she left apartment temporarily because of flooding, and housing authority had had locks on apartment changed so that she could not return. Vacated and remanded...."

"...Mrs. Glover sued in the district court for an injunction, enjoining the Authority from evicting her, refusing to renew her lease, denying her the opportunity for a fair hearing before eviction, and maintaining segregated housing units. The court held that the Authority had complied with the applicable requirements of Housing and Urban Development Department regulations and that the evidence was convincing that Mrs. Glover had violated her lease by having someone other than a member of her family living in her apartment. The court also concluded that if the plaintiff had desired a hearing on the reasons for terminating her lease, she could have had one in the state courts; that, in any event, any lack of due process was cured by the trial in the district court...."

"...The judgment below is vacated, and the case is remanded to the district court with instructions that the court direct the Bessemer Housing Authority to provide Mrs. Glover with an opportunity to be reinstated in an apartment in the project. If the Authority is still of the view that Mrs. Glover violated her lease, the Authority must comply with the existing HUD regulations (RHM 7465.9) providing for notice, hearing, and other safeguards before eviction...."

9. Adams v. Chen

United States Court of Appeals, Fifth Circuit. • October 08, 2020 • 830 Fed.Appx. 727 • 2020 WL 5987907

"...Brooke Adams and Weston Piper ("tenants") were evicted from their rented townhome and sued Fan Chen and Ruikun Tao ("landlords") for retaliation under Texas law and for housing discrimination under the federal Fair Housing Act ("FHA"). After the tenants voluntarily dismissed their claims, the district court held a two-day bench-trial on the landlords' counterclaim against the tenants for breach of the lease agreement and ruled in favor of the tenants. For the following reasons, we VACATE and REMAND...."

"...C. The district court improperly found that the landlords violated the Fair Housing Act. The district court's finding that the landlords violated the federal FHA is immaterial to whether the tenants breached the lease. In turn, we vacate. The record clearly shows that the tenants' FHA claim was voluntarily dismissed shortly after the case was removed to federal court. Because the FHA claim was not before the court, we vacate...."

10. U.S. v. West Peachtree Tenth Corp.

United States Court of Appeals, Fifth Circuit. • January 04, 1971 • 437 F.2d 221 • 1971 WL 301936

"...The good faith and disposition of landlord to adhere to letter and spirit of Fair Housing Act does not preclude federal court from granting relief on basis of past violations of the Act. Fair Housing Act of 1968, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...In action under the Fair Housing Act, federal courts are empowered to eliminate the present effects of past discrimination. Fair Housing Act of 1968, S 813, 42 U.S.C.A. S 3613; 42 U.S.C.A. S 1971(c)...."

11. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • March 14, 1973 • 474 F.2d 1164

"...Finding of one violation before effective date of Fair Housing Act cannot justify a finding of a pre-Act pattern or practice without a finding of any other factors to support the decision. Civil Rights Act of 1968, S 813, 42 U.S.C.A. S 3613...."

12. § 1437d. Contract provisions and requirements; loans and annual contributions

42 USCA § 1437d

"...For any grievance concerning an eviction or termination of tenancy that involves any activity that threatens the health, safety, or right to peaceful enjoyment of the premises of other tenants or employees of the public housing agency or any violent or drug-related criminal activity on or off such premises, or any activity resulting in a felony conviction, the agency may (A) establish an expedited grievance procedure as the Secretary shall provide by rule under section 553 of Title 5, or (B) exclude from its grievance procedure any such grievance, in any jurisdiction which requires that prior to eviction, a tenant be given a hearing in court which the Secretary determines provides the basic elements of due process (which the Secretary shall establish by rule under section 553 of Title 5). Such elements of due process shall not include a requirement that the tenant be provided an opportunity to examine relevant documents within the possession of the public housing agency. The agency shall provide to the tenant a reasonable opportunity, prior to hearing or trial, to examine any relevant documents, records, or regulations directly related to the eviction or termination...."

13. Inclusive Communities Project, Incorporated v. Lincoln Property Company

United States Court of Appeals, Fifth Circuit. • April 09, 2019 • 920 F.3d 890 • 2019 WL 1529692

"...III. The Fair Housing Act (FHA), Title III of the Civil Rights Act of 1968, 42 U.S.C. S 3601, et seq., prohibits discrimination in the rental or sale of a dwelling based on certain protected characteristics, including race. See 42 U.S.C. S 3604(a). That statute reflects "the policy of the United States to provide within constitutional limitations, for fair housing throughout the United States." 42 U.S.C. S 3604. Thus, the voluntary nature of landlord participation in the voucher program does not render it immune from liability if actionable discrimination under the FHA is established. Pertinent here, S 3604(a) provides:..."

14. APPENDIX C TO PART 36—GUIDANCE ON ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND IN COMMERCIAL FACILITIES ORIGINALLY PUBLISHED ON JULY 26, 1991.

28 CFR Pt. 36, App. C

"...Subpart A-General Illustrations of practices prohibited by this section are contained in paragraph (c), which is modeled on a similar provision in the regulations issued by the Department of Housing and Urban Development to implement the Fair Housing Act (see 24 CFR 100.400(c)(l)). Prohibited actions may include: This section protects not only individuals who allege a violation of the Act or this part, but also any individuals who support or assist them. This section applies to all investigations or proceedings initiated under the Act or this part without regard to the ultimate resolution of the underlying allegations. Because this section prohibits any act of retaliation or coercion in response to an individual's effort to exercise rights established by the Act and this part (or to support the efforts of another individual), the section applies not only to public accommodations that are otherwise subject to this part, but also to individuals other than public accommodations or to public entities. For example, it would be

a violation of the Act and this part for a private individual, e.g., a restaurant customer, to harass or intimidate an individual with a disability in an effort to prevent that individual from patronizing the restaurant. It would, likewise, be a violation of the Act and this part for a public entity to take adverse action against an employee who appeared as a witness on behalf of an individual who sought to enforce the Act...."

15. § 248.101 Definitions.

24 CFR § 248.101

"...Good Cause. With respect to displacement, the temporary or permanent uninhabitability of the project justifying relocation of all or some of the project's tenants (except where such uninhabitability is caused by the actions or inaction of the owner), or actions of the tenant that, under the terms of the tenant's lease and applicable regulations, constitute a basis for eviction...."

Additional Research on This Topic

16. § 3601. Declaration of policy

42 USCA § 3601

"...It is the policy of the United States to provide, within constitutional limitations, for fair housing throughout the United States...."

17. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

18. § 1982. Property rights of citizens

42 USCA § 1982